GLOBAL BUSINESS SOLUTIONS
FUTURE THINKING, NOW

GBS PROCESS FLOW

Incapacity — Organisational Process Flow

Poor work performance · Ill health and injury · Incarceration · Incompatibility · Labour Relations Act 66 of 1995 and the Code of Good Practice: Dismissal, 2025 (GN 3470, GG 53294) · As at 19 October 2026

PREPARED FOR
[Client / Team]

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Working document for legal review — not legal advice.

LRA = in force; Code = Code of Good Practice: Dismissal, 2025; CL = case law; BP = best practice.

01 / INCAPACITY PROCESS

Purpose, status and reading notes

This flow tells an employer what to do, by when, and who hands off to whom, from the moment a manager first sees that an employee may not be able to do the job until the matter closes and lessons feed back into policy. It covers the four forms of incapacity the Code now recognises, each with its own test, on one shared spine:

- **poor work performance** after probation (items 19 and 20), with probationers routed to items 14 to 18;
- **ill health and injury**, physical or mental, temporary or permanent, work-related or not, including dependency on alcohol or drugs (item 21(1) to (5));
- **incarceration** (imprisonment and other detention that stops the employee from working) (item 21(6));
- **incompatibility**, an inability to work in harmony with the employer's business culture or with colleagues (item 21(7)).

Every case moves through the same phases: identification and classification; a type-specific investigation and support track; a structured search for alternatives short of dismissal; an incapacity enquiry only where dismissal remains possible; a reasoned outcome with referral rights; and governance. The flow assumes no collective agreement or bargaining council procedure applies, and must be adjusted where one does.

Legal status. The fairness of a dismissal for incapacity is governed by the LRA (ss.185, 186(1), 187, 188 and 192). The employer must prove that the reason relates to the employee's capacity and that a fair procedure was followed (s.188(1), s.192(2)). Action short of dismissal, such as a unilateral demotion or a dispute about training, is tested as an unfair labour practice under s.186(2)(a). The Code of Good Practice: Dismissal, 2025 ("the Code"), issued under s.203 and in effect from 4 September 2025, repealed the Schedule 8 Code

of Good Practice: Dismissal. The Code is guidance, not statute, but anyone considering whether a dismissal was for a fair reason or in accordance with a fair procedure must take it into account (s.188(2), s.203(3)). Where the incapacity is a disability, the Employment Equity Act 55 of 1998 (EEA) applies alongside, and a dismissal on that ground without justification is automatically unfair (LRA s.187(1)(f)). Work-related injury and disease also engage COIDA and the Rehabilitation, Reintegration and Return-to-Work Regulations, 2026 (GN R.7205, GG 54273, 6 March 2026) ("RRR Regs"). A review on 15 October 2026 found no amendment to the Code since publication. The Labour Law Amendment Bill, 2025 (published for comment on 26 February 2026) would change this area if enacted, but it is a draft and not law (see 6.6). Status should be re-checked before this flow is adopted.

Labels used throughout.

- **LRA** = the Labour Relations Act and other statutes and regulations (BCEA, EEA, COIDA and RRR Regs, POPIA and its Health Information Regulations, 2026, OHS Act); binding now.
- **Code** = the Code of Good Practice: Dismissal, 2025 (cited by item number); must be taken into account, and departures must be justified.
- **CL** = a principle from case law, cited by name, court and year. Verify the citation and any later authority before using it in advice.
- **BP** = best practice or internal control; not a statutory deadline. Adopt as policy so it becomes binding internally.

Design principle. Incapacity is managed, not charged. The questions are always the same: what exactly can the employee not do; why; for how long; what would help; and what can the employer reasonably do short of dismissal. Dismissal is the last step of a documented search for alternatives, never the first response to a problem. The clock starts on the day any manager first sees the problem, because delay both prejudices the employee (who loses time to improve, recover or make arrangements) and weakens the employer's case. Internal targets sit inside every statutory limit.

Eight interpretation points that shape the flow.

- **The weight of the Code.** The Code is intentionally general and departures "may be justified in proper circumstances" (item 2(1)); it does not alter rights under a collective agreement (item 2(3)); and it must not be read as requiring small businesses to do what is impractical (item 3). A recognition agreement or bargaining council procedure prevails over this flow. Record any justified departure at the time.
- **Can't or won't.** Incapacity is an inability or unsuitability that is not a culpable breach of a rule; misconduct is a culpable breach (items 7 to 10). The same facts can point either way: poor output because the employee cannot do the work is incapacity; poor output because the employee will not do it is misconduct. Screen first (step 1.5) and choose one route; if facts emerge that change

the picture, switch routes openly and restart the relevant protections. Where an employee with a known mental illness is alleged to have committed misconduct, investigate whether the illness affected their capacity to appreciate the wrongfulness of the conduct or to act accordingly before deciding the route (BP). In law the employee bears the evidential burden on that point, and the illness may otherwise go to mitigation (CL: *Legal Aid South Africa v Jansen* [2020] ZALAC 37; *New Way Motor & Diesel Engineering v Marsland*, LAC 2009).

- **Four separate tests.** Poor performance is tested against a known, reasonably achievable standard and a fair opportunity to meet it (items 19–20). Ill health is tested by the extent, duration and cause of the incapacity and the alternatives short of dismissal (item 21(1)–(5)). Incarceration is tested by the extent of the incapacity and the alternatives (item 21(6)). Incompatibility is tested by whether the employee cannot work in harmony with the business culture or colleagues, and whether that can be remedied (item 21(7)). Using the wrong test is the most common substantive error.
- **Temporary, permanent and "unreasonably long".** For ill health and incarceration, the first question is duration. A temporary incapacity calls for an investigation of its extent; if the employee is likely to be absent for a time that is unreasonably long in the circumstances, the Code provides that the employer should investigate all alternatives short of dismissal, weighing the nature of the job, the period of absence, the seriousness of the condition and the possibility of a temporary replacement (item 21(1)); a failure to do so will rarely be justified. A permanent incapacity calls for a search for alternative employment or adapted duties (item 21(2)). What is "unreasonably long" is fact-specific; this flow sets review points, not a fixed number of days.
- **Disability overlay.** Many ill-health cases involve a disability. The employer must not unfairly discriminate on the ground of disability (EEA s.6(1)) and must reasonably accommodate a person with a disability unless that would impose unjustifiable hardship (EEA definition of "reasonable accommodation"; Code of Good Practice on the Employment of Persons with Disabilities, GN 1085, GG 39383, 9 November 2015). A dismissal is not automatically unfair if the reason is based on an inherent requirement of the job (LRA s.187(2)(a)). Medical testing is prohibited unless legislation permits or requires it or it is justifiable (EEA s.7, verify wording); HIV testing needs Labour Court authorisation (EEA s.7(2)). Health information is special personal information (POPIA s.26). An employer may process it for the reintegration of, or support for, workers in connection with sickness or work incapacity (s.32(1)(f)), but only through persons bound by a duty of confidentiality (s.32(2)), and subject to the Regulations relating to the Processing of Data Subjects' Health Information by Certain Responsible Parties, 2026 (GN 7198, GG 54268, 6 March 2026), which set confidentiality, security-safeguard and secure-disposal requirements for health records.
- **Work-related incapacity.** The duty to accommodate is more onerous for employees injured at work or incapacitated by a work-related illness (item 21(5)). Run the GBS COIDA flow in parallel; before dismissing or reducing the pay of an employee on a COIDA claim, the RRR Regs require: notice to the Compensation Fund or Licensee of an intention to dismiss or reduce pay (reg 10(1)(n)); a

written report of any dismissal, with reasons, to the Chief Inspector and the Fund or Licensee (reg 10(1)(m)); written notice of resumption of duty or of inability to retain the employee (reg 10(1)(o)); and retention of RRR reports for at least 30 years (reg 10(1)(d)).

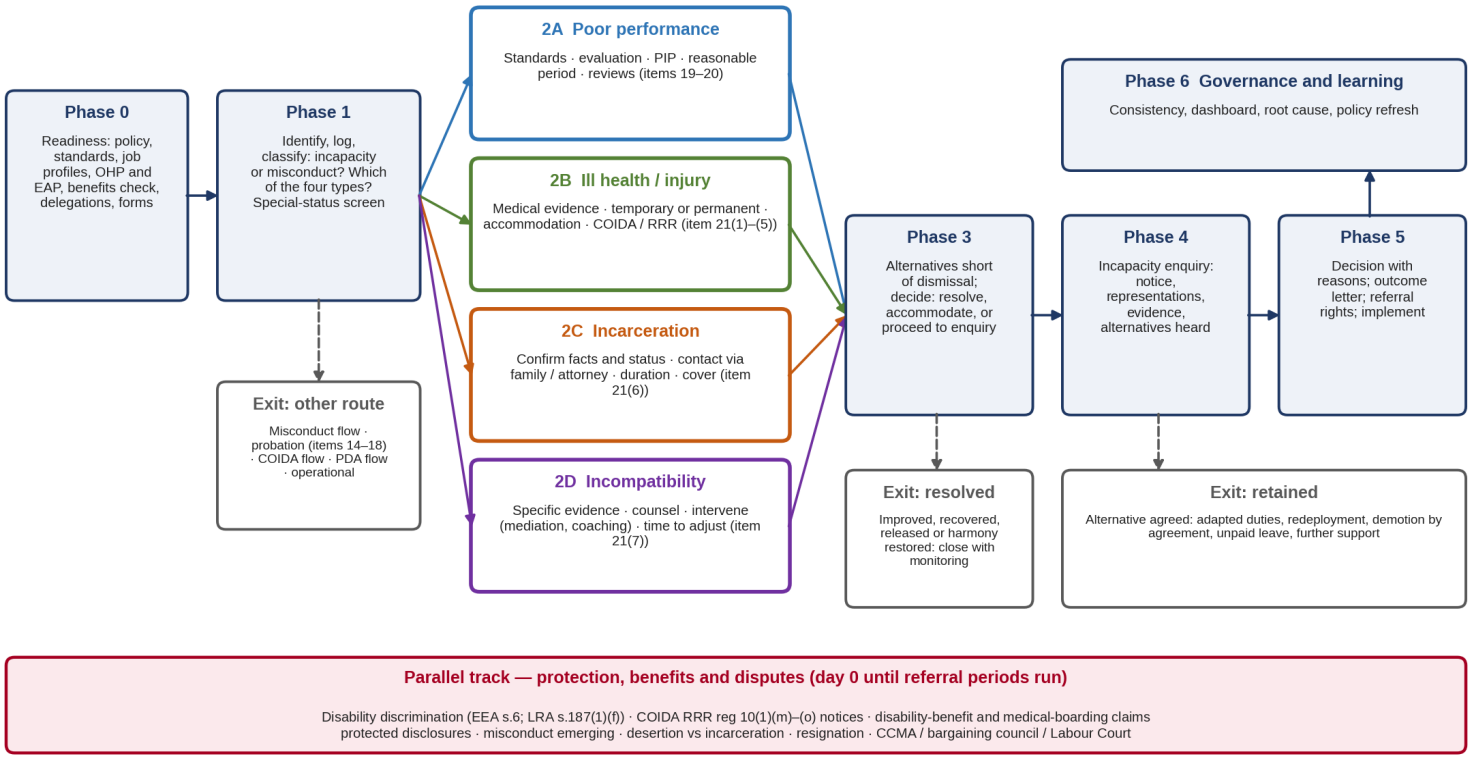
- **Counting time and pay.** Sick leave is a statutory entitlement over a 36-month cycle (BCEA s.22): the days the employee would normally work in 6 weeks per cycle or, in the first 6 months, 1 day for every 26 days worked (s.22(2)–(3)) and the employer may require a medical certificate for absence of more than two consecutive days or on more than two occasions in eight weeks (BCEA s.23(1)); a valid certificate must be issued and signed by a medical practitioner or another person certified to diagnose and treat patients and registered with a professional council established by an Act of Parliament (s.23(2)). Once paid sick leave is exhausted, the employee is on unpaid sick leave, not absent without leave; UIF illness benefits (UIA s.20) may be claimed for illness of 7 days or more once paid sick leave is exhausted. An incarcerated employee is not entitled to pay for the period of absence (no work, no pay) but remains employed until a fair decision is taken. LRA referral periods are calendar days (Interpretation Act s.4); internal steps in this flow use working days.
- **Who is the employer.** For placed workers earning above the BCEA earnings threshold (R269 600.90 a year from 1 May 2026), or placed for 3 months or less, or performing a genuine temporary service, the temporary employment service (TES) is the employer (s.198(2)) and runs the incapacity process; the client reports the concern. For workers below the threshold placed for more than 3 months, the client is deemed the employer (s.198A(3)(b); *Assign Services v NUMSA*, CC 2018) and must run the incapacity process itself; do not "request removal" as a substitute for that process. Public-service employers follow their bargaining council resolutions and the PILIR framework for ill health (verify).

Roles used. Employee Relations Officer (ERO, the case owner; in smaller organisations the HR manager); Line Manager (LM); HR Manager (HR); Occupational Health Practitioner (OHP, employer-appointed); Employee Assistance Programme provider (EAP); Employee Health and Wellness Representative (EHW, appointed under RRR Regs reg 3); COIDA Administrator (CA); Coach or Mediator (MED); Chairperson (CHR, independent of the matter); Appeal Chairperson (APC); Legal Adviser (LA); Payroll (PAY); Benefits Administrator (BEN, for group risk and retirement fund claims); Senior Sign-off (SSO, e.g. HR Director or COO; the Board chair where an executive is concerned); Board, Remuneration or Social and Ethics Committee (BOARD). The employee (EMP) and their representative (REP: a fellow employee or trade union representative, item 21(3)); together, "the employee party". External: the employee's treating medical practitioner (MP); family member or attorney acting for an incarcerated employee (FAM); Department of Correctional Services (DCS); trade union (TU); Compensation Fund (CF); retirement fund or insurer (FUND); CCMA or bargaining council (CCMA/BC).

Master flow at a glance

Every concern feeds one intake. Phase 1 decides whether the matter is incapacity at all and, if so, which of the four types; each type then runs its own Phase 2 track. All four tracks converge on Phase 3, where alternatives are exhausted and the decision is taken whether to proceed to an enquiry. Many cases leave the flow at Phase 2 or 3 because the employee improves, recovers, is released, or is retained on different terms. The protection, benefits and disputes track is not a phase: it opens on day 0 and runs until any referral period has run.




Phase 0
Readiness: policy, standards, job profiles, OHP and EAP, benefits check, delegations, forms
Phase 1
Identify, log, classify: incapacity or misconduct? Which of the four types? Special-status screen
Exit: other route
Misconduct flow · probation (items 14–18) · COIDA flow · PDA flow · operational
2A Poor performance
Standards · evaluation · PIP · reasonable period · reviews (items 19–20)
2B Ill health / injury
Medical evidence · temporary or permanent · accommodation · COIDA / RRR (item 21(1)–(5))
2C Incarceration
Confirm facts and status · contact via family / attorney · duration · cover (item 21(6))
2D Incompatibility
Specific evidence · counsel · intervene (mediation, coaching) · time to adjust (item 21(7))
Phase 3
Alternatives short of dismissal; decide: resolve, accommodate, or proceed to enquiry
Exit: resolved
Improved, recovered, released or harmony restored: close with monitoring
Phase 4
Incapacity enquiry: notice, representations, evidence, alternatives heard
Exit: retained
Alternative agreed: adapted duties, redeployment, demotion by agreement, unpaid leave, further support
Phase 5
Decision with reasons; outcome letter; referral rights; implement
Phase 6 Governance and learning
Consistency, dashboard, root cause, policy refresh
Parallel track — protection, benefits and disputes (day 0 until referral periods run)
Disability discrimination (EEA s.6; LRA s.187(1)(f)) · COIDA RRR reg 10(1)(m)–(o) notices · disability-benefit and medical-boarding claims
protected disclosures · misconduct emerging · desertion vs incarceration · resignation · CCMA / bargaining council / Labour Court

The four types compared

Type	Code	Core question	Typical triggers	Key evidence	Main alternatives	Special risks
Poor work performance	Items 19–20 (probation: 14–18)	Did the employee fail a known, reasonably achievable standard despite a fair opportunity and support?	KPI shortfalls; quality errors; missed deadlines; competency gaps after training	Job profile and standards; performance records; PIP and reviews; support log	Further training; extended PIP; transfer; demotion by agreement; role redesign	Standards never communicated; unrealistic targets; support not given; health cause missed
Ill health and injury	Item 21(1)–(5)	What can the employee not do, for how long, and can the work or the job be adapted?	Extended or frequent sick leave; disclosed condition; reduced capacity; work injury; dependency	Medical and OHP reports; functional capacity; sick-leave record; accommodation assessment	Leave (paid, unpaid); adapted duties or hours; assistive devices; alternative post; temporary replacement; rehabilitation; disability claim	Disability discrimination; COIDA duties; loss of fund benefits; POPIA; mental health overlooked
Incarceration	Item 21(6)	How long will the employee be unable to work, and can the employer reasonably hold the post open?	Arrest; bail refused; trial in custody; sentence	Confirmation of detention and status; court dates; attorney or family information; operational impact	Unpaid or special leave; temporary or fixed-term replacement; work redistributed; review at next court date	Treating it as desertion; ignoring the employee's representations; deciding before duration is known; mixing in untested misconduct
Incompatibility	Item 21(7)	Is the employee unable to work in harmony with the culture or colleagues, is it attributable to them, and can it be remedied?	Persistent relationship breakdown; team dysfunction; repeated complaints not amounting to misconduct	Specific incident log; complaints; intervention records; mediation and coaching outcomes	Counselling; mediation; coaching; transfer; restructured reporting line	Masking discrimination, retaliation or union victimisation; vague "culture" claims; no chance to remedy

The enquiry sequence (Phases 4 and 5)

Only matters where dismissal remains possible after Phase 3 reach the enquiry. The sequence is shorter and less adversarial than a disciplinary enquiry, but the employee is always heard on the facts and again on the outcome.



Integrated swimlane view

Read each phase column top to bottom to see who acts and who hands off; read each lane left to right to see one party's whole job. The ERO lane is the spine: every other lane connects to it, and the protection, benefits and disputes track runs underneath from day 0 until the referral windows close.

	P0 Readiness	P1 Identify & classify	P2 Investigate & support	P3 Alternatives	P4 Enquiry	P5 Outcome	P6 Governance
LM Line Manager	Set job standards; attend training	Notice signs; record facts; report to ERO	Run PIP; coach; interim reviews	Identify adapted or alternative work	Witness on standards and support	Implement adjusted role	
ERO Case owner (spine)	Policy, forms, register	Log; classify type; screen status	Case plan; letters; diarise reviews	Alternatives register; recommend	Notice; bundle; logistics	Outcome letter; close file	Dashboard; consistency
OHP / MP / EAP Health & support	OHP contract; EAP; RTW process		Medical report; fitness; prognosis; referral	Advise on accommodation	Give evidence		
EMP / REP Employee party	Acknowledge standards	Receive concern letter	Consent; engage; improve; treat	Propose alternatives	State case; represent	Appeal; refer 30 / 90 days	
CHR / APC Chair & appeal	Trained chair pool				Run enquiry; rulings	Decide with reasons; appeal	
PAY / BEN / CA Pay, benefits, COIDA	Fund rules; cover check	COIDA flag	Sick-leave balance; UIF; claim	Benefit options before termination		Final pay; UI-19; claims	
LA / SSO Legal & sign-off	Approve policy	Special-status advice		Sign-off for enquiry		Sign-off dismissal; CCMA	Legal watch; refresh

Parallel track (day 0 → referral periods run): disability and discrimination screen · RRR notices to Fund and Chief Inspector (reg 10(1)(m)–(o)) · PDA overlap · misconduct emerging · benefits · resignation · disputes

Phase 0 — Readiness (standing obligations)

Phase 0 has no case trigger. It must be in place before the first case, because whether a performance standard was known and reasonably achievable (item 20(1)(b)(i), (iii)), whether the inherent requirements of a job were defined, and whether the employer had the means to accommodate, are all fixed by what existed before the problem arose.

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.1 Adopt the incapacity policy	Board-approved policy covering the four types; the classification screen; each Phase 2 track; alternatives; the enquiry; outcomes; appeal; records; POPIA. Reconcile with any recognition agreement, bargaining council agreement or public-service framework, and with the disciplinary code so the two do not overlap.	BOARD, LA, HR	Now; review annually	I01 policy	Code items 2(3), 3; BP
0.2 Job profiles and inherent requirements	For each role: purpose, key outputs, performance standards, physical and cognitive demands, safety-critical elements, licences or registrations required. Inherent requirements must be genuine and objectively justifiable; they are the basis of the s.187(2)(a) defence.	HR, LM	Now; on role change	I02 job profile	LRA s.187(2)(a); EEA s.6(2)(b); Code item 20(1)
0.3 Performance management system	Written, measurable, reasonably achievable standards communicated at appointment and at each cycle; regular documented reviews; a standard PIP; a probation review process.	HR, LM	Now; each cycle	I03 standards acknowledgement; I07 PIP	Code items 17, 19, 20
0.4 Attendance and sick-leave monitoring	Payroll or HRIS tracks sick leave against the 36-month cycle; flags extended absence, exhaustion of paid sick leave and frequent short absences for an ERO review. Certificates required as BCEA s.23(1) permits, and valid only if they comply with s.23(2). Entitlement: the days normally worked in 6 weeks per 36-month cycle; in the first 6 months, 1 day per 26 days worked (s.22(2)–(3)).	PAY, HR	Now; monthly report	Attendance report	BCEA ss.22–24

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.5 Occupational health and EAP	Contract an OHP (occupational medicine practitioner or nurse) able to assess fitness, functional capacity and restrictions; an EAP with counselling, dependency and financial-wellness support; a rehabilitation referral route.	HR	Now	OHP and EAP contracts	Code item 21(4); OHS Act s.8; BP
0.6 Benefits map	Record the group life, disability (lump sum and income continuation), retirement fund ill-health early retirement and medical scheme rules that apply to each employee category, including waiting periods, the need to be "in service" when a claim is lodged, and whether termination ends cover. This decides the order of steps in 2B.11 and 5.4.	BEN, LA	Now; on renewal	I16 benefits map	Fund rules; Pension Funds Act (verify); BP
0.7 Accommodation capacity	A reasonable-accommodation procedure and budget; a list of adaptable roles and assistive devices; a redeployment pool and vacancy list accessible to the ERO.	HR, SSO	Now	Accommodation procedure	EEA s.6; Disability Code (GN 1085, 2015); Code item 21(2)
0.8 COIDA and RRR alignment	Confirm the COIDA flow, EHW representative and RRR policy are in place and cross-referenced, so a work-related case is recognised at intake. Confirm the RRR notices (reg 10(1)(m)–(o)) and 30-year retention of RRR reports (reg 10(1)(d)) are built into the COIDA flow and the retention schedule.	CA, HR	Now	COIDA flow cross-reference	RRR Regs (GN R.7205, 2026) regs 3, 10(1)(d), (m)–(o); reg 11 (verify)
0.9 Delegations	Set who may open each track, approve a PIP, refer to an OHP, grant unpaid or special leave, approve accommodation spend, approve a transfer or demotion by agreement, convene an enquiry, chair, hear appeals and sign off a dismissal.	SSO, HR	Now	I04 delegation matrix	BP
0.10 Chair and specialist pool	Trained internal chairs at more than one level; pre-vetted external chairs; mediators and coaches for incompatibility; interpreters; a secure virtual-hearing platform (needed for incarcerated or bed-ridden employees).	HR, LA	Now	Panel list	Code item 21(3); BP

Step	Organisational action	Owner	Deadline	Form / output	Authority
0.11 Records and POPIA	Restricted-access case register; medical information held separately from the personnel file and seen only by those who need it; consent forms; retention schedule; correspondence templates I01 to I38. Confirm every person who handles medical information is bound by a confidentiality duty (POPIA s.32(2)); apply the security and disposal requirements of the 2026 Health Information Regulations.	HR, ITS	Now	I05 register	POPIA ss.14, 19, 26–27, 32(1)(f), 32(2); Health Information Regulations, 2026 (GN 7198, GG 54268)
0.12 Unions and representatives	Register recognised unions, shop stewards and office-bearers, and any agreed incapacity or medical boarding procedures.	HR	Now; on change	Union register	LRA ss.14, 23; Code item 2(3)
0.13 Train	Managers: recognising the four types, the can't-or-won't screen, supportive first conversations, what not to say about health. ERO and HR: each track, POPIA, disability and COIDA overlays. Chairs: the enquiry and reasons.	HR / L&D	At least annually	Attendance records	BP
0.14 Small-business version	Where HR capacity is limited, a simplified procedure that keeps the core: tell the employee the concern; get the facts (including medical facts where relevant); discuss options; give a chance to respond with a representative; decide with reasons; keep a record.	HR, LA	Now	Simplified procedure	Code item 3

Employee side of Phase 0. Nothing is owed by an employee yet, but the performance-awareness test in item 20(1)(b)(i) is decided here: an employee who was never given the standard is hard to dismiss for missing it.

Watch. An employer with no benefits map may dismiss an employee who would otherwise have qualified for disability income, converting a manageable case into a claim for the lost benefit and an unfairness finding. Map benefits before the first case.

Phase 1 — Identification, intake and classification

Day 0 is the day any manager first sees a sustained problem: a performance shortfall, a pattern of absence or reduced capacity, news of an arrest, or a breakdown in working relationships. Phase 1 answers three questions by working day 5 (BP): is this incapacity or something else; if incapacity, which type; and does any special status change the process. It makes no finding.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.1 Recognise and record	Indicators of any of the four types (see the classification screen below).	Record specific, dated facts: what was observed, when, by whom, and the effect on the work. No diagnoses, labels or speculation about health or private life.	LM	Same day	I06 note	Code item 21(1); POPIA s.26; BP
1.2 Initial supportive conversation	Recorded concern.	A private, non-disciplinary conversation: tell the employee what has been noticed; ask how they are and whether anything is affecting their work; mention the EAP; do not demand medical details. For incarceration, see 2C.1 instead.	LM	Within 3 working days (BP)	I06 record	Code item 17 (by analogy); BP
1.3 Report and open the file	Problem persists or is serious.	Forward to the ERO with the facts; ERO opens a case reference, records the date first known, employee details, tenure and probation status.	LM, ERO	Same day as decision to escalate	I05 register	BP
1.4 Probation check	Employee is on probation.	Route to the probation process (items 14–18): reasonable guidance (item 17); representations before any dismissal or extension (item 18(1)); lower threshold (item 18(2)). Performance, suitability and compatibility may all be assessed during probation.	ERO	Working day 0–2	I09	Code items 14–18



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
1.5 Can't-or-won't screen	File opened.	Apply the screen below. Choose one route and record the reason: incapacity (and which type), misconduct, operational requirements, grievance, or no action. If unclear, gather facts before choosing.	ERO, LA	Working day 0–3	I05 classification note	Code items 7, 19–21
1.6 Special-status screen	Classified as incapacity.	Work-related injury or disease: open the COIDA flow and diarise the RRR notices (reg 10(1)(m)–(o)). Possible disability: EEA overlay (2B.8). Pregnancy-related condition: s.187(1)(e) risk; LA review. HIV: Code of Good Practice on HIV and AIDS and the World of Work (GN 451, GG 35435, 15 June 2012). Protected disclosure by the employee: run the PDA flow. Union representative or office-bearer: inform the union (BP by analogy with item 11(7)). TES worker: if the TES is the employer, report to the TES; if the worker earns below the BCEA threshold and has been placed for more than 3 months other than as a temporary service, the client is deemed the employer (s.198A(3)(b)) and runs this flow itself.	ERO, LA	Working day 0–3	Screening checklist	LRA ss.187(1)(e)–(h), 198, 198A(3)(b); EEA s.6; RRR Regs reg 10(1)(m)–(o)
1.7 Conflict check	Concern raised by someone in a conflict with the employee (e.g. in an incompatibility case).	Ensure the case owner and later the chair are independent of the relationship in question; consider an external mediator or chair.	ERO, SSO	Working day 0–3	Escalation record	BP; Code item 11(1) (genuine dialogue) by analogy
1.8 Assign the track and plan	Route chosen.	Open track 2A, 2B, 2C or 2D. Write a short case plan: the incapacity in issue, information needed, support to offer, first review date, who does what.	ERO	Working day 5 (BP)	I05 case plan	BP
1.9 Diarise all clocks	Plan written.	Calendar: review meetings; PIP milestones; medical report due; sick-leave exhaustion date; court dates; intervention review; benefit claim deadlines; COIDA notices; 30-day and 90-day referral windows once any decision is taken.	ERO	Working day 5	I05 tracker	LRA s.191; BCEA s.22; BP



Classification screen

Presenting facts	Ask	Likely route	Watch
Output or quality below standard	Does the employee know the standard, and can they meet it with support? Is there a health, workload, systems or training cause?	2A poor performance; 2B if a health cause emerges	Wilful refusal, gross negligence or deliberate slow-down is misconduct
Long or frequent sick leave; disclosed condition; reduced capacity	Is the absence genuine and certified? What is the prognosis?	2B ill health	Unauthorised or unexplained absence is misconduct; genuine illness is never "absenteeism" to be disciplined
Work injury or occupational disease	Was it reported under COIDA?	2B plus COIDA flow	More onerous duty (item 21(5)); RRR notice before dismissal
Intoxication, dependency, drug-related impairment	Is there a dependency the employee acknowledges, or a one-off breach of a rule?	2B (dependency) with EAP and rehabilitation; misconduct for a breach of rules	Item 21(4); do not ignore a relapse pattern; safety-critical roles
Employee arrested or in custody	Where is the employee, what is the status, how long?	2C incarceration	Not desertion where the employer knows the whereabouts
Conviction removes a licence, registration or clearance needed for the job	Is the requirement inherent and is there other work?	Incapacity (legal impediment) using 2C principles	Distinct from the conduct itself, which may be misconduct
Persistent friction; team breakdown; complaints that are not rule-breaches	Is it attributable to the employee? Has anyone told them specifically? Is there a protected reason behind it?	2D incompatibility	Insolence, harassment and insubordination are misconduct; complaints of discrimination or disclosures are protected
Behaviour change with known mental illness	Is the conduct linked to the illness?	Investigate the link under 2B before deciding the route (BP)	BP; *Jansen* (LAC 2020): the employee bears the evidential burden of showing the illness affected capacity; illness may mitigate

Employee obligations at this stage. Engage honestly in the first conversation; tell the employer if something is affecting their work if they want it taken into account; follow the sick-leave notification and certificate rules. An employee need not disclose a diagnosis at this stage, but should be told that the employer can only take into account what it knows.

Hand-offs. LM → ERO. ERO → LA (special status; can't-or-won't doubt). ERO → CA (work-related). ERO → EAP (with consent). ERO → TU. ERO → TES (only where the TES is the employer; see 1.6).

Watch. Two first-conversation errors recur: a manager who asks for a diagnosis or speculates about mental health (a POPIA and discrimination risk), and a manager who calls a performance or health problem "misconduct" in an email, which later makes the incapacity route look like a pretext.



Phase 2 — Investigation and support, by type

Phase 2 is where most incapacity cases are won or lost. Each track gathers the facts its test needs and gives the support the Code expects, and each ends with a review that either closes the case, continues support, or passes the case to Phase 3. Only one track normally runs at a time; where a second cause emerges (a performance problem turns out to be medical), switch tracks in writing and tell the employee why.

Track 2A — Poor work performance (after probation)

The employer must show that the employee failed to meet a performance standard, that the employee knew or could reasonably be expected to know the standard, was given a fair opportunity to meet it, and that the standard was reasonably achievable (item 20(1)). Before dismissing, the employer must have given appropriate evaluation, instruction, training, guidance or counselling, and a reasonable period for improvement (item 19(1)).

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2A.1 Confirm the standard	Track opened.	Identify the written standard (job profile, KPIs, targets, quality or service levels) and proof it was communicated. Test whether it is reasonably achievable: how do comparable employees perform; were resources, systems and workload adequate?	LM, ERO	Working day 5 (BP)	I02; I03	Code item 20(1)(b)(i), (iii)
2A.2 Evidence the shortfall	Standard confirmed.	Collect objective, dated evidence of the gap over a representative period: output data, error logs, client complaints, review notes. Avoid a single bad month or subjective impressions.	LM	Working day 5–10	Performance evidence pack	Code item 20(1)(a); LRA s.192(2)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2A.3 Counselling meeting	Shortfall evidenced.	Formal but non-disciplinary meeting; representative allowed (BP). Explain the standard and the gap with examples; ask for the employee's explanation; investigate the causes (skills, training, tools, workload, health, personal circumstances, management). A health cause moves the case to 2B; a wilful cause may move it to misconduct.	LM, ERO, EMP	Working day 10 (BP)	I06 meeting record	Code items 19(1)(a), 19(2); BP
2A.4 Performance improvement plan	Cause is capacity-related.	Written PIP agreed with the employee as far as possible: specific concerns and examples; the required standard; measurable objectives; support (training, coaching, mentoring, resources, adjusted workload) with who provides it and when; review dates; the period; and a clear statement that failure to reach the standard may lead to an incapacity enquiry and possible dismissal.	LM, ERO	Working day 15 (BP)	I07 PIP	Code items 19(1), 20(1)(b)(ii); BP
2A.5 Set a reasonable period	PIP drafted.	Long enough for the support to work and results to show: BP 30 to 90 days depending on the role, the output cycle and the gap. Complex or senior roles may need longer; repetitive output roles shorter. Record why the period is reasonable.	LM, ERO	With 2A.4	I07	Code item 19(1)(b)
2A.6 Deliver the support	PIP in force.	Provide the promised support on time and log it. Support promised but not given is fatal to fairness.	LM, HR / L&D	Throughout the PIP	I08 support log	Code item 19(1)(a)
2A.7 Interim reviews	At least two points during the PIP.	Meet, compare progress against each objective, record the employee's comments, adjust support if needed. Give the employee a copy.	LM, EMP	Per PIP (BP at least two)	I08 review record	Code item 20(1)(b)(ii); BP
2A.8 Final review	End of PIP.	Decide on the evidence: (a) standard met — close, with ordinary monitoring; (b) substantial progress — extend once with reasons; (c) standard not met — move to Phase 3. Tell the employee in writing, with reasons.	LM, ERO	Within 5 working days of the PIP end (BP)	I08 final review	Code item 19(1)(b)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2A.9 Senior and professional employees	Manager, senior employee or highly skilled professional.	A formal PIP and a warning that dismissal may follow may not be required where the employee's knowledge and experience enable them to judge their own performance, or a departure from a high standard would have severe consequences (item 20(2)). The employee must still be told of the concern and given an opportunity to respond before dismissal (item 19(2)). Record why the abbreviated route is justified.	ERO, LA, SSO	Case-specific	I24 decision memo	Code items 19(2), 20(2); CL: *Palace Engineering (Pty) Ltd v Ngcobo* [2014] ZALAC 55; *Gostelow v Datakor* (IC 1993, verify)
2A.10 Probationers	Employee on probation.	Give reasonable guidance, instruction, training or counselling (item 17). Before dismissing or extending probation, give the employee an opportunity to make representations and consider them (item 18(1)). Reasons may be less compelling than after probation (item 18(2)), but probation must not be used to avoid permanent status (item 15(2)). Extend only for a reason tied to the purpose of probation and for a proportionate period (BP).	LM, ERO	Before probation ends	I09 probation review and invitation	Code items 15–18

Employee obligations. Attend meetings; engage with the PIP; use the support offered; say early if the support is not working or if a health or personal issue is affecting performance.

Watch. A PIP issued as a formality after the decision has in substance been made is easily exposed at arbitration. So is a standard that no one else in the team meets.

Track 2B — Ill health and injury (including dependency)

Under the Code the employer should investigate the extent of the incapacity; decide whether it is temporary or permanent; where a temporary absence is likely to be unreasonably long, investigate all alternatives short of dismissal; in permanent cases, look for alternative employment or adapt the duties or work circumstances (item 21(1)–(2)); a failure to investigate alternatives will rarely be

justified. The employee must be allowed to state a case and be assisted by a trade union representative or fellow employee (item 21(3)). Degree and cause matter (item 21(4)); work-related cases carry a more onerous duty (item 21(5)).

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2B.1 Supportive contact	Absence, disclosure or reduced capacity.	Keep in touch during absence (agreed frequency and channel); confirm pay status and sick-leave balance; offer the EAP. Do not pressure a return or ask for diagnosis.	LM, ERO	From the first extended absence; then per agreement (BP fortnightly)	I13 contact log	BCEA ss.22–23; BP
2B.2 Sick leave and certificates	Absence continues.	Apply BCEA s.23: certificate for more than two consecutive days or more than two occasions in eight weeks. Diarise exhaustion of paid sick leave and tell the employee in writing what happens next (unpaid sick leave; UIF illness benefit; disability claim). Do not serve notice of termination while the employee is on sick leave or other BCEA Chapter Three leave (s.37(5); see 5.7). Entitlement: days normally worked in 6 weeks per 36-month cycle; 1 day per 26 days worked in the first 6 months (s.22(2)–(3)); certificates must comply with s.23(2). UIF illness benefits (UIA s.20) may be claimed for illness of 7 days or more once paid sick leave is exhausted.	PAY, ERO	Each absence; before exhaustion	Sick-leave notice	BCEA ss.22–24, 37(5); UIA s.20
2B.3 Consent and medical request	Absence or incapacity likely to be long, recurrent or affecting fitness for work.	Ask the employee for written consent to obtain a report from their treating practitioner and, where needed, to see the OHP. Use I11 questions: nature of the functional limitation (diagnosis only where needed); prognosis and likely duration; treatment; current fitness for the own job; restrictions; adjustments that would help; fitness for other work; review date. Explain why the information is needed and who will see it.	ERO, OHP	Working day 5–10 of the decision to investigate (BP)	I10 consent; I11 questionnaire	POPIA ss.26–27, 32(1)(f), 32(2); Health Information Regulations, 2026; EEA s.7; Code item 21(1)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2B.4 OHP assessment	Report received, or employee declines to consent.	OHP reviews the treating report and, if needed, examines the employee, and advises on functional capacity and adjustments. Where the treating practitioner and OHP differ, consider a joint consultation or independent specialist at the employer's cost. If the employee declines consent, explain that decisions will be taken on the information available; record it.	OHP	Within 10 working days of referral (BP)	I12 OHP report	CL: *SAMWU obo Solomons v City of Cape Town* (SALGBC award, verify) (own doctor not consulted); CL: *Parexel International (Pty) Ltd v Chakane* NO [2019] ZALAC 50 (reciprocal duties: an employee who withholds medical information cannot complain that the employer decided on what it had)
2B.5 Temporary or permanent	Medical information in hand.	Classify, with reasons: short-term temporary; long-term temporary (likely to be unreasonably long); permanent partial; permanent total. Record the factors: nature of the job, period of absence, seriousness, possibility of temporary replacement.	ERO, OHP	Working day 20 (BP)	I13 assessment	Code item 21(1)–(2)
2B.6 Consultation meeting	Classification made.	Meet the employee (at home, by video or at a neutral venue if they cannot attend), with representative. Share the medical findings relevant to the job; ask for the employee's view, own medical input and proposals. Repeat as the condition develops. The employee must be allowed to state a case.	ERO, LM, EMP, REP	Within 5 working days of 2B.5; then at each review	I13 consultation record	Code item 21(3); CL: *Hendricks v Mercantile & General Reinsurance* (LAC 1994, verify)
2B.7 Short-term plan	Temporary incapacity.	Hold the post; arrange temporary cover; agree a phased return, modified duties or hours on the OHP's advice; set a review date tied to the prognosis.	LM, ERO, OHP	Per prognosis	I15 return-to-work plan	Code item 21(1)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2B.8 Reasonable accommodation	Long-term or permanent incapacity; possible disability.	Assess, with the employee and OHP, adjustments to the work, workplace, hours, equipment, duties or reporting; then alternative posts, including at lower grade by agreement. Record each option, its cost and why it was accepted or rejected. The test is unjustifiable hardship to the employer, not inconvenience.	ERO, HR, OHP, LM	Working day 30 (BP)	I14 accommodation assessment	EEA s.6; Disability Code (GN 1085, 2015); Code item 21(2); CL: *Standard Bank of SA v CCMA* (LC 2008, verify); *IMATU v City of Cape Town* (LC 2005, verify)
2B.9 Dependency	Alcohol, drug or other dependency.	Offer EAP assessment and a rehabilitation programme, with an agreed return-to-work and aftercare plan and, where the policy provides, testing during aftercare. A relapse is considered against the plan, not automatically as dismissible. Safety-critical duties may be suspended on full or sick-leave pay while treatment takes place.	ERO, EAP, OHP	On identification	I15 rehabilitation agreement	Code item 21(4); OHS Act; GSR 2A (verify)
2B.10 Work-related cases	Injury on duty or occupational disease.	Run the COIDA flow for reporting, temporary disablement and RRR. Apply the more onerous accommodation duty: meaningful adapted or alternative work; re-skilling. Before dismissal or a pay reduction, give the Fund or Licensee notice of the intention (reg 10(1)(n)); after any dismissal, report it with reasons in writing to the Chief Inspector and the Fund or Licensee (reg 10(1)(m)); notify resumption of duty or inability to retain (reg 10(1)(o)); keep RRR reports for at least 30 years (reg 10(1)(d)).	CA, EHW, ERO	Per COIDA flow; reg 10(1)(n) notice before any decision; reg 10(1)(m) and (o) notices after the event (BP within 5 working days)	COIDA flow; I33	Code item 21(5); RRR Regs reg 10(1)(d), (m)–(o)
2B.11 Benefits before decisions	Incapacity is long-term or permanent.	Check the benefits map: is the employee eligible for income continuation, disability or ill-health early retirement? Does the claim have to be lodged while in service, or after a waiting period? Help the employee lodge it. Do not terminate employment in a way that forfeits cover without the employee's informed agreement.	BEN, ERO, LA	Before Phase 3 decision	I16 benefits check memo	Fund rules; BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2B.12 Mental health	Condition is psychiatric or psychological.	Take the employee's own practitioner's views seriously; involve the OHP; be cautious with timing of meetings; consider adjustments such as reduced hours, changed reporting lines, workload controls. Where misconduct is alleged, investigate whether the illness affected the employee's capacity to appreciate the wrongfulness of the conduct or to act accordingly before deciding the route (BP); the employee bears the evidential burden on that point (*Jansen*).	ERO, OHP	Throughout	I13	CL: *Marsland* (LAC 2009); *Jansen* ([2020] ZALAC 37); *Sanlam Life Insurance Ltd v Mogomatsi* (CA12/2022, LAC 2023)
2B.13 Frequent short absences	Pattern of certified short absences.	Treat as ill health: meet, seek medical input on an underlying condition, and consider support. Where absences are genuine but the level is unsustainable and no medical solution exists, the case proceeds as ill-health incapacity (not misconduct and not poor performance). Uncertified or false sick leave is misconduct.	ERO, OHP	Review at thresholds set in policy	I13	Code item 21(1); CL (verify)
2B.14 Review and route	At each review date.	Close (recovered, returned); continue plan; or move to Phase 3 because the incapacity is permanent or the absence has become unreasonably long and accommodation has not solved it.	ERO, SSO	At each review	I13; I24	Code item 21(1)–(2)

Employee obligations. Notify absence and provide certificates; stay in contact as agreed; consent to, or explain a refusal to consent to, reasonable medical enquiries; attend OHP appointments; follow treatment and rehabilitation plans; take part in consultations; tell the employer about benefit claims and changes in condition.

Watch. Dismissing after sick leave runs out, without medical information or a consultation, is the classic unfair ill-health dismissal. So is relying on an OHP report the employee never saw or could not answer.

Track 2C — Incarceration

Imprisonment is a form of incapacity that may be temporary or permanent; the employer should assess its extent and investigate all alternatives short of dismissal (item 21(6)). The employer's interest is the operational effect of the absence, not the guilt of the employee. The criminal matter is relevant only if the underlying conduct is itself workplace misconduct, or a conviction removes an inherent requirement of the job.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2C.1 Learn and verify	Employee absent; employer learns of arrest or detention.	Confirm the facts with the employee, family or attorney, SAPS or the court roll: date of arrest; charge (only as far as relevant to the job); bail status; next court date; whether awaiting trial, convicted or sentenced; expected release date. Record the source.	LM, ERO	Within 2 working days of learning (BP)	I17 verification record	Code item 21(6); BP
2C.2 Stop any desertion or AWOL process	Employer knows the whereabouts.	Record that the absence is due to detention. Do not treat it as desertion or unauthorised absence: an employee who is known to be in custody has not shown an intention not to return.	ERO	Immediately	I05 note	Code item 21(6); BP (desertion requires an intention not to return)
2C.3 Pay and leave status	Detention confirmed.	Explain in writing to the employee (via attorney or family where needed) that no pay is due for the absence; offer to treat the first days as annual leave or unpaid leave at the employee's request; confirm benefits position (medical scheme and fund contributions during unpaid leave).	PAY, ERO, BEN	Within 5 working days (BP)	I19 leave letter	BCEA s.20; no work no pay; BP
2C.4 Open a channel for representations	Detention continues.	Write to the employee (through the attorney or family, or at the correctional centre) setting out the operational concern and inviting representations on the expected duration, the post and possible arrangements, with a named contact and deadline. Where the employee wants to be seen, request a visit through DCS or a video link; allow a representative to act.	ERO	Within 5 working days of verification (BP)	I18 letter to employee	Code items 21(3), 21(6); BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2C.5 Review points	Representations or information received.	Tie reviews to the criminal timetable: bail hearing; each postponement; trial; sentence. Keep a running estimate of duration and the source of the estimate.	ERO	At each court date; at least every 30 days (BP)	I17 update	Code item 21(6)
2C.6 Assess operational impact and alternatives	Absence likely to continue.	Assess: nature and criticality of the post; how the work is being covered; cost and feasibility of a temporary or fixed-term replacement; redistribution; length of service. Record options considered and why each was accepted or rejected.	LM, ERO	Before Phase 3	I23 alternatives register	Code item 21(6)
2C.7 Separate any misconduct	The alleged crime involves the employer, colleagues, clients or the job.	Consider a separate disciplinary process under the Misconduct flow, on the employer's own evidence and standard of proof; do not assume guilt from the arrest. Keep the incapacity decision separate and based on the absence.	ERO, LA	When facts are known	Misconduct flow	Code items 7–11
2C.8 Conviction and inherent requirements	Conviction or sentence affects a licence, registration or clearance (driver's licence, PSIRA, fit-and-proper, firearm competency).	Treat the loss of the requirement as incapacity: investigate whether it is inherent, whether and when it may be restored, and whether other work exists.	ERO, LA	On conviction or sentence	I24	LRA s.187(2)(a); Code item 21(6)
2C.9 Release before a decision	Employee released (bail, acquittal, withdrawal, sentence served).	Allow a return to work; hold a return meeting; address any related misconduct separately; update the file.	LM, ERO	On release	I05	BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2C.10 Route to Phase 3	Absence has become, or is likely to be, unreasonably long and alternatives are exhausted.	Prepare the decision memo; plan how the employee will participate in any enquiry (written representations, representative, video link, visit).	ERO, SSO	When reached	I24	Code item 21(6)

Employee obligations. Let the employer know of the detention as soon as possible, directly or through someone else; nominate a contact person; give realistic information about duration; respond to letters and make representations; tell the employer promptly on release.

Watch. Two errors decide most incarceration cases against employers: dismissing for "desertion" when the employer knew where the employee was, and deciding without asking the employee (through any available channel) for representations.

Track 2D — Incompatibility

Incompatibility, shown by an inability to work in harmony with the employer's business culture or with fellow employees, can be a form of incapacity that justifies dismissal (item 21(7)). The Code gives no procedure, so this track follows the case law: the incompatibility must be real and attributable to the employee, the employee must be told specifically what is wrong and what is required, and must be given a fair opportunity to remedy it before dismissal is considered (CL: *Erasmus v BB Bread*, IC 1987; *Wright v St Mary's Hospital*, IC 1992; *Jabari v Telkom*, LC 2006; *Zeda Car Leasing t/a Avis Fleet v Van Dyk* [2020] ZALAC 4; the IC and LC authorities to be verified).

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2D.1 Protected-reason screen	Track opened.	Before anything else, check whether the "incompatibility" may reflect race, gender, language, religion, culture, disability, age, pregnancy, union activity, a grievance, a harassment complaint or a protected disclosure. If it may, LA review; the matter cannot proceed as incompatibility until that risk is excluded.	ERO, LA	Working day 0–3	I05 screening note	LRA s.187(1); EEA s.6; PDA

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2D.2 Specific evidence	Screen passed.	Log dated incidents, complaints, observations and effects on the work (missed handovers, team conflict, clients lost). Distinguish rule-breaches (route to misconduct) from relationship and fit problems. Opinions are recorded with the facts behind them.	LM, ERO	Working day 5–15 (BP)	I20 evidence log	Code item 21(7); LRA s.192(2)
2D.3 Attribution	Evidence gathered.	Assess the contribution of others: is a manager, colleague or structure causing or feeding the problem? Incompatibility caused by others' prejudice or poor management is not the employee's incapacity.	ERO, HR	With 2D.2	I20 attribution note	CL (verify)
2D.4 Counselling meeting	Attributable incompatibility.	Meet with the employee and representative; set out the specific concerns and effects; explain the culture or working norms in question and why they are legitimate; hear the employee's account; agree what must change.	ERO, LM, EMP, REP	Working day 15–20 (BP)	I21 counselling letter	Code items 21(3) (by analogy), 21(7)
2D.5 Remedial plan	Counselling held.	Agree interventions: mediation between the parties; coaching; team facilitation; clarified roles and reporting lines; a behavioural agreement with measurable indicators; a review period (BP 30 to 90 days).	ERO, MED	Within 5 working days of 2D.4	I21 plan; I22 mediation record	BP
2D.6 Reviews	During the plan.	Meet at least twice; record progress and any new incidents; adjust the plan. Tell the employee clearly, in the final review, if dismissal is now being considered.	ERO, LM	Per plan	I22 review record	BP
2D.7 Transfer and restructure	Plan has not restored harmony.	Consider transfer to another team, site or reporting line, or a change in role, where that would remove the source of friction.	ERO, HR	Before Phase 3	I23	Code item 21(7); BP
2D.8 Senior managers	Executive or senior manager whose fit with the leadership team or strategy is in issue.	The process may be shorter, but the employee must still be told of the concern and given a chance to respond and adapt. Distinguish legitimate disagreement from incompatibility.	ERO, LA, SSO	Case-specific	I24	CL: *Zeda Car Leasing t/a Avis Fleet v Van Dyk* [2020] ZALAC 4

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
2D.9 Route to Phase 3	Incompatibility persists and is serious, attributable and harmful.	Prepare the decision memo with the evidence, the interventions and their results.	ERO, SSO	When reached	I24	Code item 21(7)

Employee obligations. Engage with counselling, mediation and coaching; honour the behavioural agreement; raise grievances through the grievance procedure rather than through conflict.

Watch. Incompatibility is the easiest ground to abuse and the hardest to prove. “Not a cultural fit” without specifics, or a process begun after the employee lodged a grievance or complaint, is a strong signal of an automatically unfair or pretextual dismissal.

Phase 3 — Alternatives short of dismissal and the decision to proceed

All four tracks converge here. The Code provides that the employer should investigate all possible alternatives short of dismissal for ill health and incarceration (item 21(1), (6)) and look for alternative employment or adapted duties in permanent incapacity (item 21(2)); a failure to do so will rarely be justified. For poor performance, the employer must be able to show that dismissal was an appropriate response (item 20(1)(b)(iv)). Phase 3 records that search and ends with a signed decision.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.1 Compile the alternatives register	Track ends without resolution.	List every alternative relevant to the type (table below), who assessed it, its cost and feasibility, the employee's view, and the reason for accepting or rejecting it.	ERO	Within 5 working days of track end (BP)	I23 register	Code items 20(1)(b)(iv), 21(1)–(2), 21(6)
3.2 Vacancy search	Alternative post may help.	Search current and expected vacancies across the organisation (and group, if appropriate), including lower-graded roles, and match them to the employee's capacity. Record the search.	HR	With 3.1	I23	Code item 21(2)
3.3 Consult on alternatives	Register drafted.	Meet the employee and representative; share the register; invite further proposals; allow time to consider. A lower-graded post or reduced pay is offered, not imposed; a unilateral demotion is an unfair labour practice risk.	ERO, EMP, REP	Within 5 working days of 3.1 (BP)	I23 consultation record	LRA s.186(2)(a); Code item 21(3)
3.4 Hardship assessment	Alternative is feasible but costly or disruptive.	Assess cost, size and resources of the employer, effect on colleagues and service, safety, and duration. Record why any alternative would impose unjustifiable hardship.	ERO, SSO	With 3.3	I23	EEA s.6; Disability Code (GN 1085, 2015)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
3.5 Benefits and COIDA check	Termination possible.	Confirm the benefits position (2B.11) and, for work-related cases, that the RRR notice of intention (reg 10(1)(n)) has been given or is scheduled. For long-serving employees, record the effect of dismissal on them.	BEN, CA, ERO	Before 3.6	I16; I33	RRR Regs reg 10(1)(n); BP
3.6 Decision	Register and consultation complete.	Choose: (a) retain on agreed alternative terms; (b) continue support with a new review date; (c) agreed separation or medical boarding (only on informed, voluntary agreement, with LA review); (d) convene an incapacity enquiry because dismissal remains possible. SSO signs off (d).	ERO, SSO	Within 5 working days of 3.3 (BP)	I24 decision memo	Code items 19–21
3.7 Confirm in writing	Decision made.	Letter to the employee with the decision and reasons; for (a), the new terms signed by both parties; for (d), that an enquiry will follow and the notice to come.	ERO	Within 2 working days of 3.6	I31; I24	BP

Alternatives by type

Type	Alternatives to consider	Usually not enough on its own
Poor performance	Further targeted training; extended PIP with new support; mentoring; reduced scope or reallocation of the weakest tasks; transfer to a role matching demonstrated skills; demotion by agreement; change of shift, tools or systems	A second PIP identical to the first; a transfer to a role with the same shortfall
Ill health and injury	Paid and unpaid sick leave; annual leave; unpaid special leave; phased return; reduced or flexible hours; home working; modified duties; assistive devices; workplace adjustments; temporary replacement; alternative post; re-skilling; rehabilitation; disability or income-continuation claim while employed; ill-health early retirement	A general statement that “no suitable posts exist” without a search
Incarceration	Unpaid or special leave; annual leave at the employee’s request; temporary or fixed-term replacement; redistribution; holding the post until the next court milestone; re-application or re-employment preference on release (by agreement)	Assuming that any detention justifies replacement



Type	Alternatives to consider	Usually not enough on its own
Incompatibility	Mediation; coaching; team facilitation; behavioural agreement; changed reporting line; transfer to another team or site; role redesign	Moving the complainants instead of addressing the cause; transfer without addressing the behaviour

Employee obligations. Consider alternatives in good faith; make proposals; answer offers within the time given. An employee who unreasonably refuses a suitable alternative weakens a later unfairness claim.

Watch. The alternatives register is the employer's main exhibit at arbitration. An empty or retrospective register is treated as evidence that alternatives were not considered.

Phase 4 — The incapacity enquiry

The enquiry is a structured opportunity for the employee to state a case before any dismissal decision (items 19(2), 21(3)). It is not a trial of fault: the questions are whether the incapacity exists, its extent and likely duration, whether the employer has done what is reasonable, and whether any alternative remains. It is run less adversarially than a disciplinary enquiry, but with the same attention to notice, disclosure, representation and reasons. The notice rule in the Misconduct flow is adopted: at least 48 hours and two full working days, with longer for complex matters (BP 5 working days).

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.1 Appoint the chair	Phase 3 decision (d).	Chair independent of the case and of any relationship in issue, senior enough to decide, trained in incapacity; external for senior employees or where the case owner is conflicted. Signed independence declaration.	ERO, SSO	Before the notice	I27	BP; Code item 11(1) (genuine dialogue) by analogy
4.2 Compile the bundle	Chair appointed.	Index and paginate: standards and job profile; performance evidence and PIP records; medical and OHP reports (with consent and only what is relevant); incarceration verification; incompatibility log and intervention records; alternatives register; benefits memo; all letters.	ERO	Working day 5 after 3.6 (BP)	I26 bundle index	Code item 21(3); POPIA s.32(2); Health Information Regulations, 2026
4.3 Notice to attend	Bundle ready.	The notice states: that the enquiry concerns incapacity (naming the type), not misconduct; the facts relied on; the possible outcomes, including dismissal; date, time, venue or link; the chair's name; the right to a fellow employee or union representative; to an interpreter; to present evidence, including their own medical evidence, and call witnesses; to question the employer's witnesses; to propose alternatives; accommodation available; what happens if the employee cannot or does not attend. Attach the bundle.	ERO	Serve at least 48 hours and two working days before (BP 5 working days)	I25 notice; I26 proof of service	Code items 19(2), 21(3); BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.4 Accommodation and participation	Notice served.	Arrange what the employee needs to participate: a venue or video link for an ill or detained employee; breaks; a support person; written representations as an alternative; a DCS visit or video booking for incarceration; an interpreter.	ERO	Before the enquiry	I25 addendum	EEA s.6; Code item 11(4)(d) (by analogy)
4.5 Opening and preliminary rights	Enquiry opens.	Chair introduces everyone, explains that the purpose is to consider the employee's capacity and possible alternatives, that no decision has been made, and that the employee will be heard on outcome. Chair confirms on record: notice and bundle received in time; representative present or right waived; interpreter offered; accommodation in place.	CHR	Start	I28 script and rights checklist	Code item 21(3)
4.6 Preliminary applications	Either party raises a point.	Postponement (e.g. awaiting a medical report or court date), further documents, recusal, legal representation at the chair's discretion. Rule with reasons.	CHR	Before evidence	I29	CL: *MEC for Finance, KZN v Dorkin* (LAC 2008)
4.7 Employer sets out the case	Preliminaries resolved.	The ERO or LM presents: the incapacity and its effect; the standard or requirement; the steps taken in Phase 2; the alternatives in Phase 3 and why they failed. Witnesses (LM, OHP, coach or mediator) may be called and questioned.	ERO, LM	During enquiry	I29 record	LRA s.192(2)
4.8 Employee party responds	Employer's case presented.	Employee and representative question the employer's witnesses; present their account, their own medical or other evidence and witnesses; propose alternatives. The chair may ask questions of anyone.	EMP, REP, CHR	During enquiry	I29	Code items 19(2), 21(3)
4.9 Experts	Medical or technical question in dispute.	Where the OHP and treating practitioner differ, the chair may adjourn for a joint report or independent specialist. Experts give opinion; the chair decides.	CHR, OHP, MP	During or after adjournment	I12	BP
4.10 Alternatives canvassed	Evidence closed.	Chair asks both parties for any further alternatives and explores each on the record.	CHR	Before closing	I29	Code items 20(1)(b)(iv), 21(1)–(2)

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
4.11 Closing and adjournment	Alternatives canvassed.	Each party summarises; the employee party speaks last. Chair adjourns and says when the finding will be given (BP within 3 working days).	CHR	After 4.10	I29	BP
4.12 Employee absent or unable to attend	Employee does not attend.	Distinguish inability (illness, detention) from refusal. Postpone once, or proceed on written representations or through a representative. If the employee unreasonably refuses to participate, proceed and record why.	CHR	On the day	I29	Code item 11(6) (by analogy)

Employee obligations. Attend or explain; bring relevant medical or other evidence; engage with the alternatives; comply with procedural rulings.

Watch. A chair who asks “why were you sick so often?” in an accusatory tone, or who treats a performance enquiry as a disciplinary hearing, turns a capacity case into a fault case and invites a procedural finding.

Phase 5 — Finding, outcome and implementation

The chair makes findings on the incapacity first, then hears representations on the outcome before deciding it. Every outcome is reasoned in writing and comes with the employee's rights to refer the matter.

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.1 Findings on incapacity	Enquiry adjourned.	Apply the type's test. Poor performance: standard, awareness, fair opportunity, achievability, shortfall (item 20(1)). Ill health: extent, temporary or permanent, likely duration, cause, work-relatedness (item 21(1)–(5)). Incarceration: extent and likely duration, operational impact (item 21(6)). Incompatibility: existence, attribution, seriousness, persistence, efforts to remedy (item 21(7)).	CHR	Within 3 working days (BP)	I30 part A	Code items 19–21
5.2 Announce findings	Findings made.	Reconvene or deliver in writing. If incapacity is not established, the matter ends: confirm in writing and restore the employee.	CHR	On reconvening	I30 part A	BP
5.3 Representations on outcome	Incapacity established.	Hear the employee party on the appropriate outcome and any last alternatives; the employer responds; the employee has the last word. Consider length of service, the cause of the incapacity, the effect of dismissal, and benefits.	CHR, EMP, REP	After 5.2	I29	Code items 20(1)(b)(iv), 21(4)–(5)
5.4 Pre-decision checks	Before the outcome.	Confirm: benefits position (2B.11); RRR notice of intention to the Fund or Licensee in work-related cases (reg 10(1)(n)); no protected-reason or disability-discrimination issue unresolved; consistency with comparable cases.	CHR, ERO, LA	Before 5.5	I16; I33; I24	RRR Regs reg 10(1)(n); LRA s.187

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.5 Decide the outcome	Checks complete.	Options: retain with further support; retain on alternative terms by agreement (transfer, adapted role, demotion by agreement); extended unpaid leave with a review date; medical boarding or ill-health retirement where the fund approves and the employee agrees; dismissal with notice, where the incapacity is established, alternatives are exhausted, and dismissal is an appropriate response.	CHR	Within 5 working days of 5.3 (BP)	I30 part B	Code items 20(1)(b)(iv), 21
5.6 Pronounce and explain rights	Outcome decided.	State the outcome and reasons; explain in a language the employee understands the effective date, any internal appeal, and the referral rights (5.8). Confirm understanding on the record.	CHR	At the reconvened enquiry	I29	BP
5.7 Written outcome	Outcome given.	Letter with findings, reasons, outcome and effective date; for retention on new terms, the terms for signature; for dismissal, notice period or pay in lieu, final pay, benefits position, return of property; appeal; referral rights and CCMA or council contact details. Serve with proof. Do not serve notice of termination while the employee is on annual, sick, maternity, parental or family-responsibility leave to which they are entitled under BCEA Chapter Three (s.37(5)); serve it after that leave ends. Notice may run concurrently only with sick leave taken during the notice period. The referral-rights paragraph must say that the 30 days run from dismissal or, if later, from the final appeal decision (5.8).	CHR, ERO	Within 2 working days (BP)	I31 (retention); I32 (dismissal)	BCEA ss.37, 37(5), 42; LRA s.191(1)(b)(i); BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.8 Rights to refer	Every outcome.	Dismissal for incapacity: refer an unfair dismissal dispute to the CCMA or a council with jurisdiction within 30 days of the date of dismissal or, if later, of the date on which the employer made a final decision to dismiss or to uphold the dismissal on appeal (s.191(1)(b)(i)); conciliation, then arbitration. All dismissal disputes, including automatically unfair ones (disability or another prohibited ground), must be referred within the same 30 days; after conciliation they go to the Labour Court (s.191(5)(b)(i)). Unilateral demotion or other action short of dismissal: unfair labour practice within 90 days (s.191(1)(b)(ii)). Unfair discrimination short of dismissal: within 6 months of the act or omission (EEA s.10(2)); if unresolved, to the Labour Court, or to CCMA arbitration where the employee earns below the BCEA earnings threshold or the parties consent (EEA s.10(6)). Late referral needs condonation.	CHR, ERO	With 5.6 and 5.7	I32	LRA ss.186, 187(1)(f), 191(1)(b), 191(5); EEA s.10(2), (6)
5.9 Internal appeal	Employee appeals (if the policy provides).	Heard by someone senior and uninvolved, on the record, with new medical or other evidence if it was not available earlier (a changed prognosis often is).	APC	Lodge within 5 working days; decide within 10 (BP)	I35	BP

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
5.10 Implement	Outcome final.	Retention: update contract, payroll, OHP restrictions, line-manager briefing. Dismissal: notice as per BCEA s.37 (worked, or paid in lieu), never served during BCEA Chapter Three leave (s.37(5)); final pay and leave pay; certificate of service (s.42); UI-19 and UIF declaration; benefit and fund forms; access and property. Severance pay under BCEA s.41 is for operational requirements, not incapacity, unless a contract or collective agreement provides otherwise. Work-related cases: report the dismissal and its reasons in writing to the Chief Inspector and the Compensation Fund or Licensee (RRR Regs reg 10(1)(m)), or notify resumption of duty or inability to retain (reg 10(1)(o)), BP within 5 working days; keep RRR reports for at least 30 years (reg 10(1)(d)).	PAY, HR, BEN, ITS, CA	Per contract and notice period	I34 termination checklist	BCEA ss.37, 37(5), 40–42; UIA (verify); RRR Regs reg 10(1)(d), (m), (o)
5.11 Close the file	Implemented.	File the record; separate medical information; update the consistency register; diarise retention and secure destruction under the 2026 Health Information Regulations; keep RRR reports for at least 30 years (RRR Regs reg 10(1)(d)).	ERO	Within 5 working days (BP)	I05	POPIA s.14; Health Information Regulations, 2026; RRR Regs reg 10(1)(d); BP
5.12 Dispute response	Referral received.	Diarise; brief LA; prepare the bundle and record; consider settlement. In capacity arbitrations, legal representation is restricted unless the commissioner allows it (CCMA Rules rule 25, verify).	LA, ERO	Per notice of set-down	I36	LRA ss.191, 192; CCMA Rules

Employee obligations. Put all relevant information on outcome; return property; lodge benefit claims; appeal within the policy period; refer any dispute in time.

Watch. The 2025 Code no longer repeats Schedule 8's direction to give reasons and remind the employee of referral rights, but both remain good practice and remove later condonation arguments.



Phase 6 — Governance and learning

Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
6.1 Consistency review	Quarterly cycle.	Compare outcomes by type, site and chair; test whether similar cases received similar support and alternatives.	ERO, HR	Quarterly	I37	BP
6.2 Dashboard	Quarterly cycle.	Cases by type; time in each phase; PIP success rate; return-to-work rate; accommodations made and their cost; incarceration cases and outcomes; referrals and results.	ERO, SSO	Quarterly	I37	BP
6.3 Equity and disability monitoring	Annually.	Check whether incapacity processes fall disproportionately on designated groups or employees with disabilities; designated employers feed the results into the EE plan (EEA ss.13, 20); other employers may do so as BP.	HR, LA	Annually	EE report input	EEA ss.13, 20 (designated employers); BP (others)
6.4 Root cause	Serious case closed; any lost referral.	Which control failed: standards, support, medical information, accommodation, benefits, or process.	HR, LA	Within 30 days (BP)	I38	BP
6.5 Policy and template refresh	Annually or on legal change.	Update I01, job profiles, PIP and letters; re-communicate.	HR, LA	Annually	I01	Code item 2(1)



Step	Trigger	Organisational action	Owner	Deadline	Form	Authority
6.6 Legislative watch	Ongoing.	Track: amendments to the Code or LRA; EEA codes; COIDA RRR Regs; CCMA Rules; case law on incompatibility, mental health and incarceration. Track the Labour Law Amendment Bill, 2025 (published for comment 26 February 2026; a draft, not law), in particular proposed s.188(4) (probation), the express right to respond in capacity dismissals, the compensation cap for high earners and the deletion of Schedule 8; and the POPIA Health Information Regulations, 2026.	LA	Ongoing	Change log	LRA s.203

Parallel track — protection, benefits and disputes

This track opens on day 0 and runs until the referral periods have run. Its events are triggered by what happens to people, not by the case timeline.

Event	Trigger	Organisational action	Deadline	Form	Authority
P1 Disability discrimination	Incapacity is or may be a disability.	Apply the EEA overlay: reasonable accommodation to the point of unjustifiable hardship; decisions based on inherent requirements only; LA review before dismissal.	Throughout	I14	EEA s.6; LRA ss.187(1)(f), 187(2)(a); CL: *Marsland* (LAC 2009)
P2 COIDA and RRR	Work-related injury or disease.	Run the COIDA flow; give the Fund or Licensee notice of any intention to dismiss or reduce pay (reg 10(1)(n)); after a dismissal, report it with reasons in writing to the Chief Inspector and the Fund or Licensee (reg 10(1)(m)); notify resumption of duty or inability to retain (reg 10(1)(o)); keep RRR reports for at least 30 years (reg 10(1)(d)); involve the EHW representative.	Before any decision (10(1)(n)); after dismissal or return (10(1)(m), (o); BP within 5 working days)	I33; COIDA flow	RRR Regs reg 10(1)(d), (m)–(o)
P3 Benefit claims	Long-term incapacity.	Help the employee lodge claims while in service; coordinate the timing of any termination with the insurer or fund; keep the employee informed of decisions.	Per fund rules	I16	Fund rules; BP
P4 Protected disclosure overlap	Employee made a disclosure before or during the process.	LA review; independent grounds with a chronology; independent approver; run the PDA flow.	Before any decision	PDA flow	LRA s.187(1)(h); PDA
P5 Misconduct emerges	Evidence of culpable conduct appears (fraud, false sick notes, refusal).	Decide whether to switch to, or run alongside, the Misconduct flow; tell the employee which process applies to which facts.	When it emerges	Referral note	Code items 7–11



Event	Trigger	Organisational action	Deadline	Form	Authority
P6 Mental illness and misconduct (BP)	Misconduct alleged against an employee with a known mental illness.	Investigate whether the illness affected the employee's capacity to appreciate the wrongfulness of the conduct or to act accordingly before deciding the route; consider accommodation; treat the illness as possible mitigation.	Before deciding the route (BP)	I13	BP; CL: *Legal Aid SA v Jansen* [2020] ZALAC 37 (employee bears the evidential burden)
P7 Pregnancy	Pregnancy-related illness or reduced capacity.	Treat with care: dismissal on account of pregnancy or a reason related to it is automatically unfair; apply BCEA maternity protections and the Code of Good Practice on the Protection of Employees during Pregnancy (verify).	Throughout	LA memo	LRA s.187(1)(e); BCEA ss.25–26
P8 Resignation or constructive dismissal claim	Employee resigns alleging intolerable treatment of a health condition.	LA review; the Phase 2 record is the defence. The employee must show the employer knew or ought to have known of the condition and made continued employment intolerable, and was indifferent to it.	Employee refers within 30 days	I36	LRA s.186(1)(e); CL: *Sanlam Life Insurance Ltd v Mogomatsi* (CA12/2022, LAC 2023)
P9 Unfair labour practice claim	Unilateral demotion, withheld training, or unfair treatment during a PIP.	Respond with the record; prefer agreed changes to unilateral ones.	Employee refers within 90 days	I36	LRA ss.186(2)(a), 191(1)(b)(ii)
P10 Desertion confusion	Absence of an employee in custody treated as desertion.	Stop; route to 2C; if a dismissal letter has already been sent, take LA advice on withdrawal.	Immediately	I17	Code item 21(6)
P11 Dismissal dispute	Employee refers.	Conciliation, then arbitration (capacity); automatically unfair claims to the Labour Court after conciliation (same 30 days). Consider s.188A pre-dismissal arbitration by consent in complex cases.	Employee within 30 days of dismissal or, if later, the final appeal decision	I36	LRA ss.188A, 191
P12 Award or judgment	Award or judgment.	Comply, or apply for review. Remedies: reinstatement, re-employment or compensation up to 12 months (24 for automatically unfair dismissals).	Review within 6 weeks	Litigation file	LRA ss.145, 193, 194



Employee obligations and conduct

An incapacity process is collaborative. The employee protects their position by engaging, and the employer should explain these duties in the policy and in each letter, without using them to discourage participation.

Obligation	When	Consequence if not met	Authority
Know the performance standards and ask if unclear	Always	Weakens a later claim that standards were unknown	Code item 20(1)(b)(i)
Engage with counselling, the PIP and the support offered	Track 2A	Decision taken on the record available	Code item 19
Notify absence; provide medical certificates as required	Track 2B	Absence treated as unauthorised; sick pay may be withheld	BCEA ss.23–24
Consent to, or explain refusal of, reasonable medical enquiries; attend OHP appointments	Track 2B	Employer may decide on the information it has	CL: *Parexel International (Pty) Ltd v Chakane* NO [2019] ZALAC 50
Follow treatment, rehabilitation and return-to-work plans	Track 2B	Relapse or non-compliance weighs in the outcome	Code item 21(4); RRR Regs
Tell the employer of detention as soon as possible, directly or through someone else; nominate a contact; give realistic information	Track 2C	Harder to show the absence was not desertion; decisions on less information	Code item 21(6)
Engage with mediation, coaching and behavioural agreements	Track 2D	Supports a finding that the incompatibility cannot be remedied	Code item 21(7)
Consider alternatives in good faith	Phase 3	Unreasonable refusal weakens an unfairness claim	Code item 21(2)
Attend the enquiry or explain, and bring relevant evidence	Phase 4	Enquiry may proceed in absence	Code item 21(3)



Obligation	When	Consequence if not met	Authority
Refer any dispute in time	30 days from dismissal or, if later, the final appeal decision (dismissal); 90 days (unfair labour practice); 6 months (EEA discrimination short of dismissal)	Condonation needed	LRA s.191(1)(b); EEA s.10(2)

Rights the organisation must not obstruct. To know the concern and the evidence; to state a case and be assisted by a fellow employee or union representative; to present their own medical evidence; reasonable accommodation; confidentiality of health information and POPIA access and correction; freedom from unfair discrimination, including on disability, pregnancy and HIV status; to be heard on outcome; to refer a dispute to the CCMA, a bargaining council or the Labour Court.

Hand-offs and interfaces register

Send the minimum information needed, keep proof of what was sent, to whom and when, and record it on the case. Health information needs particular care.

Party or system	Trigger	What is handed over	When	Step	Authority
Line manager	Concern noticed	Dated facts; PIP delivery; return-to-work arrangements	Same day; throughout	1.1–1.3, 2A, 2B.7	BP
OHP	Medical question	Consent; job profile; specific questions; not the whole personnel file	Working day 5–10 of decision	2B.3–2B.4	POPIA ss.26, 32(2); Health Information Regulations, 2026
Treating practitioner	Report needed	Consent; I11 questions	With 2B.3	2B.3	POPIA; HPCSA ethical rules (verify)
EAP	Support offered	Referral with consent only	On request	1.2, 2B.9	BP
COIDA Administrator / EHW	Work-related case	Case flag; RRR plan; reg 10(1)(n) notice to the Fund before dismissal or a pay cut; reg 10(1)(m) dismissal report (to the Chief Inspector and Fund) and reg 10(1)(o) resumption notice after	Working day 0–3; before decision; after dismissal or return	1.6, 2B.10, 5.4, 5.10, P2	RRR Regs reg 10(1)(m)–(o)
Benefits administrator / fund	Long-term incapacity	Claim forms; employer statement; timing of any termination	Before Phase 3 decision	2B.11, 3.5, 5.4	Fund rules
Payroll	Sick leave; unpaid leave; outcome	Leave status; pay changes; final pay	Each pay run	2B.2, 2C.3, 5.10	BCEA
Family, attorney, DCS	Employee detained	Letters; visit or video requests; information on duration	Within 5 working days of verification	2C.1–2C.5	Code item 21(6)

Party or system	Trigger	What is handed over	When	Step	Authority
Mediator or coach	Incompatibility plan	Brief; confidentiality terms	With 2D.5	2D.5	BP
Trade union	Representative or office-bearer concerned	Notice and consultation	Before the enquiry	1.6	Code item 11(7) (by analogy)
TES	Placed worker concerned	Facts. Where the TES is the employer, request that it runs the process. Where the worker is deemed the client's employee (s.198A(3)(b)), the client runs the process itself and must not request removal instead.	Same day	1.6	LRA ss.198, 198A(3)(b); CL: *Assign Services v NUMSA* [2018] ZACC 22
Chairperson	Enquiry convened	Appointment; bundle; policy; script	Before the notice	4.1–4.2	BP
PDA Designated Officer	Employee is a discloser	Case flag; chronology	Working day 0–3	1.6, P4	LRA s.187(1)(h)
Misconduct flow (ERO)	Culpable conduct emerges	Facts and evidence for the separate process	When it emerges	2C.7, P5	Code items 7–11
CCMA / bargaining council	Referral; s.188A inquiry	Response bundle; attendance	Per notice	5.12, P11	LRA ss.188A, 191
Board / Remco / Social and Ethics Committee	Quarterly; executive cases	Aggregate report; oversight	Quarterly	6.2	Governance

Adjacent regimes to check at triage. The GBS Misconduct, COIDA and PDA flows; the EEA and its Codes on disability and HIV; POPIA (special personal information); BCEA (sick leave, maternity, notice); OHS Act (fitness for safety-critical work); the Unemployment Insurance Act; retirement fund and insurance rules; any sector regulator's fit-and-proper rules.

Forms register

Thirty-eight forms support the flow, numbered in the order used. The existing GBS Incapacity Management Policy and the redrafted policy are shown where they already contain the content of a form. None is a statutory form, although the referral forms in 5.8 are prescribed LRA forms completed by the employee, and COIDA forms are covered by the COIDA flow.

Form	Name	Used at	Existing GBS template
I01	Incapacity management policy	0.1, 6.5	GBS Policy; redrafted policy (update per section 15)
I02	Job profile and inherent-requirements statement	0.2, 2A.1	—
I03	Performance standards acknowledgement	0.3, 2A.1	—
I04	Delegation of authority matrix	0.9	—
I05	Case register, classification note, case plan and tracker	1.3–1.9, 5.11	—
I06	Concern and counselling meeting record	1.2, 2A.3	—
I07	Performance improvement plan	2A.4–2A.5	GBS Policy §2.5; redrafted §2.5 (add dismissal statement and support log)
I08	PIP support log, interim and final review record	2A.6–2A.8	GBS Policy §2.5 (partly)
I09	Probation review and invitation to make representations	1.4, 2A.10	—
I10	Medical information consent and authorisation	2B.3	—
I11	Questionnaire to treating practitioner / OHP	2B.3	—
I12	OHP functional capacity report	2B.4, 4.9	—
I13	Ill-health contact log, assessment and consultation record	2B.1–2B.6, 2B.14	—



Form	Name	Used at	Existing GBS template
I14	Reasonable accommodation assessment	2B.8, P1	—
I15	Return-to-work or rehabilitation plan	2B.7, 2B.9	Redrafted §8 (listed, not provided)
I16	Benefits map and benefits check memo	0.6, 2B.11, 3.5	—
I17	Incarceration verification and update record	2C.1, 2C.5	—
I18	Letter to detained employee inviting representations	2C.4	—
I19	Leave arrangement letter (annual, unpaid or special leave)	2C.3	—
I20	Incompatibility evidence and attribution log	2D.2–2D.3	Redrafted §8 intervention log (listed, not provided)
I21	Incompatibility counselling letter and remedial plan	2D.4–2D.5	—
I22	Mediation, coaching and review record	2D.5–2D.6	—
I23	Alternatives register and consultation record	2C.6, 3.1–3.4	—
I24	Decision memo (route, abbreviated process, proceed to enquiry)	2A.9, 3.6	—
I25	Notice to attend incapacity enquiry and participation addendum	4.3–4.4	Redrafted §8 (listed, not provided)
I26	Bundle index and proof of service	4.2–4.3	—
I27	Chair appointment and independence declaration	4.1	—
I28	Chair's script and preliminary-rights checklist	4.5	GBS Policy §6 consolidated checklist (adapt)
I29	Record of proceedings	4.5–4.12, 5.3, 5.6	—
I30	Findings (A) and outcome (B) with reasons	5.1–5.5	—
I31	Outcome letter: retention, alternative terms or further support	3.7, 5.7	—
I32	Notice of termination for incapacity with referral rights (30 days from dismissal or final appeal decision; not served during statutory leave)	5.7–5.8	Redrafted §8 (listed, not provided)



Form	Name	Used at	Existing GBS template
I33	RRR notices: intention to dismiss or reduce pay (reg 10(1)(n)); dismissal report to the Chief Inspector and Fund or Licensee (reg 10(1)(m)); resumption of duty or inability to retain (reg 10(1)(o)) (cross-reference COIDA flow)	2B.10, 3.5, 5.4, 5.10, P2	COIDA flow
I34	Termination checklist (notice, final pay, certificate, UI-19, benefits, access)	5.10	—
I35	Appeal form and appeal outcome	5.9	—
I36	CCMA / council / Labour Court response pack	5.12, P8–P11	—
I37	Governance dashboard and consistency register	6.1–6.2	—
I38	Root-cause memo	6.4	—

Timeline calendar and liability register

Incapacity cases have no single clock. Poor performance and incompatibility run to the length of the improvement period; ill health runs to the prognosis and sick-leave position; incarceration runs to the criminal timetable. The calendars below use internal targets as policy; the referral and review periods are statutory.

Common calendar (from first managerial knowledge)

When	Event	Owner	Authority	Type
Day 0	Facts recorded	LM	—	BP
Within 3 working days	Supportive first conversation (not for incarceration)	LM	—	BP
Working day 0–3	File opened; can't-or-won't and special-status screens	ERO, LA	Code items 7, 19–21	BP
Working day 5	Track assigned; case plan; clocks diarised	ERO	—	BP
End of track	Final review; route to Phase 3 or close	ERO	Code items 19–21	BP
Track end + 5–10 working days	Alternatives register; consultation; decision memo	ERO, SSO	Code item 21	BP
At least 48 hours and two working days after service (BP 5 working days)	Earliest enquiry date	ERO, CHR	Code items 19(2), 21(3)	Policy minimum
Enquiry close + 3 working days	Findings	CHR	—	BP
Findings + representations + up to 5 working days	Outcome decided and explained	CHR	—	BP
Outcome + 2 working days	Written outcome with referral rights	CHR, ERO	LRA s.191	BP
Outcome + 5 / + 15 working days	Appeal lodged / decided (if provided)	EMP, APC	—	Policy



When	Event	Owner	Authority	Type
Dismissal (or final appeal decision, if later) + 30 days	Last day to refer a dismissal dispute	EMP	LRA s.191(1)(b)(i)	Statutory
Act, or awareness of it, + 90 days	Last day to refer an unfair labour practice	EMP	LRA s.191(1)(b)(ii)	Statutory
Award + 6 weeks	Review application	LA	LRA s.145(1)(a)	Statutory

Type-specific milestones

Type	Typical milestones (BP unless stated)
Poor performance	Counselling meeting by working day 10; PIP by working day 15; PIP period 30–90 days; at least two interim reviews; final review within 5 working days of PIP end; one extension at most unless reasons are recorded.
Ill health	Contact from first extended absence; certificates per BCEA s.23 (statutory); medical consent and request within 5–10 working days of deciding to investigate; OHP report within 10 working days; classification by working day 20; accommodation assessment by working day 30; reviews tied to prognosis; before paid sick leave is exhausted, written notice of what follows; before any termination, benefits check; in work-related cases, RRR notice of intention before dismissal and dismissal report after it (RRR Regs reg 10(1)(n), (m)); no notice of termination during statutory leave (BCEA s.37(5)).
Incarceration	Verification within 2 working days of learning; pay and leave letter and invitation to make representations within 5 working days; reviews at each court date and at least every 30 days; decision point only once duration is reasonably known or the absence has become unreasonably long.
Incompatibility	Protected-reason screen by working day 3; evidence by working day 15; counselling meeting by working day 20; remedial plan within 5 working days; plan period 30–90 days with at least two reviews.

Liability register

Exposure	Who is exposed	Consequence	Authority
Dismissal for incapacity without a fair reason or fair procedure	Employer	Reinstatement, re-employment or compensation up to 12 months' remuneration	LRA ss.188, 193, 194(1)
Dismissal for disability, pregnancy or another prohibited ground	Employer	Automatically unfair; compensation up to 24 months' remuneration	LRA ss.187, 194(3)
Unfair discrimination or failure to accommodate short of dismissal	Employer	Damages and compensation; compliance orders	EEA ss.6, 10, 50 (verify)
Unilateral demotion or unfair conduct relating to training	Employer	Unfair labour practice; compensation up to 12 months' remuneration	LRA ss.186(2)(a), 194(4)
Constructive dismissal through treatment of a health condition	Employer	As for unfair dismissal	LRA s.186(1)(e)
Unjustified medical testing	Employer	Unfair discrimination claim	EEA s.7
Unlawful processing or disclosure of health information	Responsible party	Administrative fine; civil claim	POPIA ss.26, 32, 99, 109; Health Information Regulations, 2026
Dismissing or cutting the pay of an injured employee without notice to the Fund, or not reporting the dismissal to the Chief Inspector and the Fund	Employer	Breach of RRR Regs; weakens fairness	RRR Regs reg 10(1)(m)–(n)
Termination that forfeits disability or ill-health retirement cover	Employer	Claim for the lost benefit; unfairness finding	Fund rules; CL (verify)
Allowing an unfit employee to perform safety-critical work	Employer	OHS Act offence; liability for harm	OHS Act s.8
Underpayment of sick pay	Employer	Compliance order; repayment	BCEA ss.22, 68–69

Corrections to existing GBS materials and drafting issues

Comparing the GBS Incapacity Management Policy, the Baseline and Redrafted incapacity policies and the Holistic Incapacity Policy presentation against the LRA, the 2025 Code, the EEA, the RRR Regs and case law turned up points that should be fixed before client use. This flow already reflects them. The Redrafted policy fixes several points in the original and should be the base for the update.

Corrections to the GBS Incapacity Management Policy

#	Current statement	Where	Correction
1	Refers to "the Code of Good Practice: Dismissal (Schedule 8)" and to "Schedule 8 — Code of Good Practice: Dismissal"	Status box; §1 legal basis	Schedule 8 was repealed on 4 September 2025. Cite the Code of Good Practice: Dismissal, 2025 (GN 3470, GG 53294), items 14 to 21.
2	"Enhanced Code of Good Practice, 2025 — Updated incapacity and accommodation standards"	§1 legal basis	No instrument has that name. Replace with the 2025 Code, and add the EEA Code of Good Practice on the Employment of Persons with Disabilities (GN 1085, GG 39383, 9 November 2015) and the COIDA RRR Regs, 2026.
3	Incapacity defined as inability "through no fault of their own"	§1	The phrase fits poor performance and ill health but not incarceration (which may follow the employee's own conduct) or incompatibility. Define incapacity as an inability or unsuitability to meet the requirements of the job that does not arise from a culpable breach of a workplace rule.
4	Poor performance steps omit achievability and the warning	§2.3–2.4	Add that the standard must be reasonably achievable (item 20(1)(b)(iii)); that the reasons for underperformance must be investigated (a health cause moves the case to ill health); that the PIP must warn that dismissal may follow, subject to the item 20(2) exception for managers and senior professionals.
5	Probation: "the standard of proof for poor performance is less onerous"	§2.1	Item 18(2) refers to reasons that may be less compelling, not a lower standard of proof. Add item 17 (reasonable guidance), item 18(1) (representations before dismissal or extension) and item 15(2) (probation not to be used to avoid permanent status).

#	Current statement	Where	Correction
6	"Dismiss only where incapacity is permanent or of indefinite duration"; "temporary incapacity alone is insufficient basis for dismissal"	§3.3 step 7; §3.5	Too narrow. Item 21(1) contemplates dismissal where a temporary absence is likely to be unreasonably long and no alternative exists. Reword: dismissal may be considered where the incapacity is permanent, or temporary but likely to last an unreasonably long time, and alternatives are exhausted.
7	Work-related ill health: "presumption in favour of accommodation"; "preference for re-employment even if full restoration impossible"	§3.4	No statutory presumption exists. State the item 21(5) rule (a more onerous duty to accommodate) and the RRR Regs duties, including notice to the Fund or Licensee before dismissal or a pay reduction (reg 10(1)(n)), the written dismissal report to the Chief Inspector and the Fund (reg 10(1)(m)), the resumption or inability-to-retain notice (reg 10(1)(o)) and 30-year retention of RRR reports (reg 10(1)(d)).
8	"Undue hardship" test	§3.3 step 5	The EEA disability framework uses "unjustifiable hardship" (verify). Use that term and say what is weighed: cost, size and resources, effect on operations and others, safety.
9	No reference to benefits before dismissal	§3	Add a mandatory benefits check (disability, income continuation, ill-health retirement) before any termination, so the employee is not dismissed out of cover.
10	No reference to dependency	§3	Add item 21(4): counselling and rehabilitation may be appropriate for alcohol or drug dependency; relapse is assessed against the rehabilitation plan.
11	Incompatibility indicators include "refusal to adopt … ethical standards", "disrespect", "active obstruction of team efforts"	§4.2	Refusal to follow rules, disrespect and obstruction are usually misconduct and should be charged as such. Incompatibility is an inability to work in harmony that is not a rule-breach. Add a protected-reason screen and an attribution test (is it the employee, or others?).
12	Incarceration: "Employers … may not treat the situation as desertion"	§5.1	Correct in substance; add the source (item 21(6)), the no-work-no-pay position, leave options, contact through family or attorney, review at court dates, and the distinct case where a conviction removes an inherent requirement.
13	Consolidated checklist: "misconduct process considered separately" only for incarceration	§6 item 13	Applies to all four types (the Redrafted policy already corrects this).
14	Records kept "for a minimum of three years"	§7.3	Keep at least until referral, review and appeal periods and any litigation have ended, and in line with a retention schedule; health records from occupational exposure may need far longer retention under OHS regulations (verify). Store medical information separately (POPIA s.26).

#	Current statement	Where	Correction
15	Right to refer: CCMA or council "within 30 days of the date of dismissal"	§7.4	Add: all dismissal disputes, including automatically unfair dismissals (disability, pregnancy), are referred within 30 days and go to the Labour Court after conciliation; the 30 days run from the date of dismissal or, if later, the employer's final decision to dismiss or uphold the dismissal on appeal (s.191(1)(b)(i)); unfair labour practices (e.g. unilateral demotion) within 90 days; EEA unfair discrimination claims short of dismissal within 6 months (EEA s.10(2)), with CCMA arbitration available below the BCEA threshold or by consent (s.10(6)); condonation.
16	Ill-health step 2: "Request a comprehensive medical report: diagnosis …"	§3.3	Ask for functional information, not a diagnosis, unless the diagnosis is necessary; obtain written consent; limit access (POPIA ss.26–27, 32(1)(f), 32(2); Health Information Regulations, 2026); consider the employee's own doctor and an OHP (CL: *Solomons*, verify).

Corrections to the Baseline and Redrafted policies

#	Current statement	Where	Correction
17	"Below is a detailed incapacity management policy … synthesizing …"	Baseline, opening line	Drafting residue; remove. The Baseline is superseded by the Redrafted policy and should be withdrawn.
18	Ill-health indicator "reduced grooming"; "visible physical effects"	Baseline §2; GBS §3.2	Managers should record effects on work, not speculate about health from appearance. Replace with work-related indicators.
19	"End-of-probation dismissals must be justified, preferably by documented job-related incapacity"	Baseline §1	Item 18(2) and 15(1) allow decisions on performance and suitability; the point is that reasons must relate to the purpose of probation and the employee must be heard (item 18(1)).
20	"Attendance-related incapacity" and "frequent short-term absences" listed as poor performance	Redrafted §2.1–2.3	Genuine illness-related absence belongs in the ill-health track (item 21), with medical input and the disability overlay; uncertified or false absence is misconduct. Managing sick leave as "poor performance" risks a disability-discrimination claim. Move these indicators to §3.

#	Current statement	Where	Correction
21	COIDA section lists duties but omits the notice to the Fund	Redrafted §3.4	Add the RRR Regs reg 10(1) notices (10(1)(n) before dismissal or pay reduction; 10(1)(m) dismissal report and 10(1)(o) resumption notice after; 30-year retention under 10(1)(d)), and a cross-reference to the GBS COIDA flow.
22	Right to refer still limited to 30 days	Redrafted §7.4	As correction 15.
23	Annexures listed but not provided	Redrafted §8	Draft them from the forms register in section 13 (I07, I15, I20, I25, I32 and others).
24	Over-arching test omits the four separate tests	Redrafted §1	Keep the common test, but add a sentence that each type has its own test (items 19–20; 21(1)–(5); 21(6); 21(7)).

Corrections to the Holistic Incapacity Policy presentation

#	Current statement	Where	Correction
25	Incarceration case table: *Khanye v Auditor General* (2024) 5 BALR 530 (CCMA); "*Eskom Ltd v CCMA & Njawuza* (Labour Court JR2025/06, 2008)"; "[Unnamed case, Labour Court 2007]"	Slide 8	Verify every citation before use. A CCMA award is not binding precedent; the Eskom citation mixes a case number format with a 2008 date and describes the CCMA's finding rather than the court's; an unnamed case cannot be cited. Replace with verified Labour Court or Labour Appeal Court authority, or present the principles without citations.
26	*SAMWU obo Solomons v City of Cape Town* [2009] 18 SALGB … "The court held …"	Slide 11	The citation is to a bargaining council award, not a court. Describe it as an award and verify it.
27	*Parexel International (Pty) Ltd v Chakane*, *Wilcocks v Khawula*, *Jansen*, *Mogomatsi*	Slides 11–12	*Parexel v Chakane* ([2019] ZALAC 50), *Jansen* ([2020] ZALAC 37) and *Mogomatsi* (CA12/2022, LAC 2023) are verified. Present *Jansen* accurately: it does not require discipline to pause, and places the evidential burden on the employee to show that the illness negated capacity. Confirm the characterisation of *Wilcocks* (a dismissal following the employee's acceptance of medical boarding) before relying on it as a general rule.
28	Re-employment preference for work-related incapacity is "a specific requirement"	Slides 10, 13	The Code's re-employment item is item 24(16), which deals with retrenchment. For work-related incapacity rely on item 21(5) and the RRR Regs; describe re-employment preference as best practice unless the RRR Regs require it (verify).

#	Current statement	Where	Correction
29	Cause of incapacity "may be unrelated to work (e.g. general illness, injury, imprisonment)"	Slide 10	Imprisonment is a separate form of incapacity under item 21(6), not a category of ill health.
30	Incompatibility scenarios: introverts vs extroverts; direct vs indirect communicators; high-context vs low-context communication	Slides 5–6	Differences in style are normal diversity and can be proxies for culture, language or ethnicity. They do not by themselves show an inability to work in harmony. Present them as causes of friction to be managed, and warn that relying on them for dismissal risks unfair discrimination.
31	Dictionary definition including legal incompatibility of laws	Slide 4	Not relevant to item 21(7); replace with the Code's wording and the case-law requirements (attribution, specific notice, opportunity to remedy).
32	Incarceration: consider whether the relationship has become "intolerable"	Slide 7 (substantive 5)	Intolerability is the Code's misconduct test (items 7, 9). For incarceration the question is whether the absence is unreasonably long and alternatives are exhausted (item 21(6)).

Drafting issues in the 2025 Code worth raising

- The old Schedule 8 item 11 guidelines for ill-health dismissals (whether the employee can perform the work; the extent; whether the work or duties can be adapted; the availability of suitable alternative work) have not been carried over. There is now no substantive checklist for ill-health dismissals equivalent to items 8 and 20.
- Item 21(3) links the right to state a case and be assisted to "the investigation referred to in sub-item (1)", which deals with temporary incapacity. It does not expressly extend to permanent incapacity (21(2)), imprisonment (21(6)) or incompatibility (21(7)).
- Item 21(6) refers to "imprisonment" but not to pre-trial detention, and says nothing about pay during the absence or about the employee's participation from custody.
- Item 21(7) recognises incompatibility but gives no procedure, leaving the requirements (specific notice, attribution, opportunity to remedy) to case law.
- Old item 8(3) (investigate the reasons for unsatisfactory performance and consider other ways, short of dismissal, to remedy the matter) and old item 8(4) (right to be heard with a representative) have been dropped; item 19(2) now says only that the employee should have an opportunity to respond.
- Old item 8(1)(g) (probation extended only for a reason relating to its purpose, and proportionately) and 8(1)(i) (advise the employee of referral rights) have been dropped.

- Item 20(2) (no warning needed for managers and senior professionals) does not say how it interacts with the evaluation and improvement period in item 19(1).
- Item 21(2) uses “disability” without reference to the EEA definition, and the Code does not refer to the EEA Disability Code, the HIV Code or the COIDA RRR Regs.
- Item 21(4) uses “alcoholism or drug abuse”; modern practice speaks of substance use disorders or dependency, and the Code is silent on other dependencies.
- The notice is headed “Code of Practice: Dismissal”, the text “Code of Good Practice: Dismissal”, and the Code itself is headed “Schedule 8” although the notice says it repeals Schedule 8. Cite it by notice and Gazette number.

Revision history — v1.1 (19 October 2026)

Version 1.1 implements every finding of the independent legal verification and validation review of 15 October 2026 (Critical 0, Major 5, Minor 7, Improvement 5), as approved by GBS. Rows O1 to O6 are items still open.

#	Finding (severity)	Where	Change made
1	Internal appeal and the 30-day referral period (Major)	5.7, 5.8, P11, common calendar, employee obligations, I32, Correction 15	30 days now run from dismissal or, if later, the employer’s final decision to dismiss or uphold the dismissal on appeal (s.191(1)(b)(i)). Correction 15 no longer tells GBS to say an appeal does not extend the period.
2	BCEA s.37(5): no notice during statutory leave (Major)	2B.2, 5.7, 5.10, I32, ill-health milestones	Added the rule that notice of termination may not be given during BCEA Chapter Three leave and may run concurrently only with sick leave.

#	Finding (severity)	Where	Change made
3	COIDA RRR Regulations: notices and citation (Major)	Purpose, legal status, 0.8, 1.6, 2B.10, 3.5, 5.4, 5.10, 5.11, P2, hand-offs, I33, liability register, Corrections 7 and 21, master-flow and swimlane diagrams	Cited GN R.7205 (GG 54273, 6 March 2026). Added the reg 10(1)(m) dismissal report to the Chief Inspector and Fund, the reg 10(1)(o) resumption or inability-to-retain notice and the reg 10(1)(d) 30-year retention, alongside the reg 10(1)(n) notice of intention. Kept "10(1)": the Acts Online text shows sub-regulation (1). Both diagrams regenerated.
4	POPIA Health Information Regulations, 2026 (Major)	Purpose, labels, 0.11, 2B.3, 4.2, 5.11, OHP hand-off, liability register, Correction 16, 6.6	Cited GN 7198, GG 54268, 6 March 2026, and POPIA s.32(1)(f) and (2). Added the confidentiality-duty, security and secure-disposal controls.
5	TES and s.198A deemed employer (Major)	Purpose (who is the employer), 1.6, Phase 1 hand-offs, TES interface	Below-threshold workers placed for more than 3 months are deemed the client's employees, so the client runs the process (*Assign Services*, CC 2018). Threshold updated to R269 600.90 from 1 May 2026. Removed "request removal" as a substitute.
6	Jansen overstated (Minor)	Purpose (can't or won't), classification screen, 2B.12, P6, Correction 27	Discipline no longer "pauses". The link is investigated before choosing the route (BP), and the employee bears the evidential burden. P6 is relabelled BP.
7	Code item 11(1) cited for chair independence (Minor)	1.7, 4.1	Authority now reads "BP; Code item 11(1) (genuine dialogue) by analogy".
8	Code guidance presented as a requirement (Minor)	Purpose (interpretation point), Phase 3 intro, Track 2B intro	Changed to "should investigate … a failure to do so will rarely be justified".

#	Finding (severity)	Where	Change made
9	2C.2 cited rejected authority (Minor)	2C.2	Authority now reads “Code item 21(6); BP (desertion requires an intention not to return)”.
10	Inconsistent day units (Minor)	1.4–1.7, 2D.1, interfaces register, type-specific milestones	Changed to “Working day”.
11	5.8 referral routes incomplete (Minor)	5.8, P11, employee obligations, Correction 15	30 days applies to all dismissals, including automatically unfair ones. Added EEA s.10(2) 6 months and the s.10(6) CCMA arbitration route. Removed “(verify)”.
12	EEA ss.13, 20 apply to designated employers only (Minor)	6.3	Limited to designated employers; BP for others.
13	Sick-leave amount and certificate issuer (Improvement)	Purpose (counting time), 0.4, 2B.2	Added s.22(2)–(3) entitlement and s.23(2) certificate requirements.
14	UIF illness benefits (Improvement)	Purpose, 2B.2	UIA s.20 cited: claim for illness of 7 days or more. Removed “(verify)”.
15	Labour Law Amendment Bill, 2025 (Improvement)	Legal status, 6.6, Sources	Added to the legislative watch as a draft only (published for comment 26 February 2026).
16	Disability and HIV Codes (Improvement)	Purpose, 0.7, 1.6, 2B.8, 3.4, Correction 2	Completed the citations: GN 1085 (2015) and GN 451 (2012). Removed “(verify)”.
17	Case citations (Improvement)	2A.9, 2B.4, 2B.12, 2D intro, 2D.8, P8, employee obligations	Added neutral citations for *Parexel*, *Palace Engineering*, *Zeda* and *Mogomatsi*. Added the *Parexel* reciprocal-duties point and “and was indifferent to it” in P8.
O1	Open: CCMA Rules rule 25 numbering	5.12	Left as “(verify)”.
O2	Open: Code item 24(16) as re-employment item	Correction 28	Left as “(verify)”.

#	Finding (severity)	Where	Change made
O3	Open: unchecked cases (Solomons, Gostelow, Hendricks, Standard Bank, IMATU, Erasmus, Wright, Jabari, Dorkin, Marsland)	2A.9, 2B.4, 2B.6, 2B.8, 2D intro, 4.6	The courts and years were not changed. Each "(verify)" flag was kept.
O4	Open: PILIR, Pension Funds Act, HPCSA rules, OHS medical-record retention	Purpose, 0.6, interfaces register, Correction 14	Left as "(verify)".
O5	Open: RRR Regs gazette number and reporting period	2B.10, 5.10, P2	GG 54273 is taken from law-firm commentary because the official Gazette could not be reached. The Regulations set no period for the reg 10(1)(m) and (o) reports, so BP is 5 working days.
O6	Open: questions for the author (V&V section 5)	Whole flow	Awaiting GBS answers on collective agreements, employer size, designated status, a client-side TES route, fund rules, internal appeal policy, public-service users and re-issue if the Bill is enacted.

Sources

- Code of Good Practice: Dismissal, 2025, GN 3470, GG 53294, 4 September 2025 (uploaded); repealed Schedule 8 text (uploaded webinar contents document).
- GBS Incapacity Management Policy; Baseline Incapacity Policy (New Code Aligned 1.0); Redrafted Incapacity Management Policy; Holistic Incapacity Policy under new Codes 1.0 presentation (uploaded).
- GBS Misconduct, COIDA, PDA and AARTO process flows (project files), for format and cross-references.
- Commentary confirming commencement on 4 September 2025 and the repeal of Schedule 8 and the operational-requirements code (Acts Online, 1 October 2025; DLA Piper, 26 September 2025; Werksmans, September 2025). A review on 15 October 2026 found no amendment to the Code; the Labour Law Amendment Bill, 2025 is a draft only.
- The LRA, BCEA, EEA, COIDA and the RRR Regs, POPIA, the OHS Act, the Unemployment Insurance Act, the Interpretation Act, the CCMA Rules, the EEA Codes on disability and HIV, and the cases named are cited from general knowledge; verify wording, citations and any later authority before use.

- v1.1 verification (V&V review of 15 October 2026 and checks on 19 October 2026): RRR Regulations, GN R.7205, GG 54273, 6 March 2026, reg 10(1)(a)–(o) (Acts Online; Bowmans; CDH, 12 March 2026); POPIA Health Information Regulations, GN 7198, GG 54268, 6 March 2026 (Acts Online; Moonstone; Bowmans); Disability Code, GN 1085, GG 39383, 9 November 2015; HIV Code, GN 451, GG 35435, 15 June 2012; *Assign Services v NUMSA* [2018] ZACC 22; *Legal Aid SA v Jansen* [2020] ZALAC 37; *Parexel v Chakane* [2019] ZALAC 50; *Palace Engineering v Ngcobo* [2014] ZALAC 55; *Zeda Car Leasing v Van Dyk* [2020] ZALAC 4; *Sanlam v Mogomatsi* (LAC 2023); LRA s.191(1)(b)(i) as applied in [2019] ZALCJHB 303; BCEA ss.22, 23, 37(5); UIA s.20; EEA s.10; Labour Law Amendment Bill, 2025 (CDH, 27 February 2026).

This flow is a working document for legal review, not legal advice.